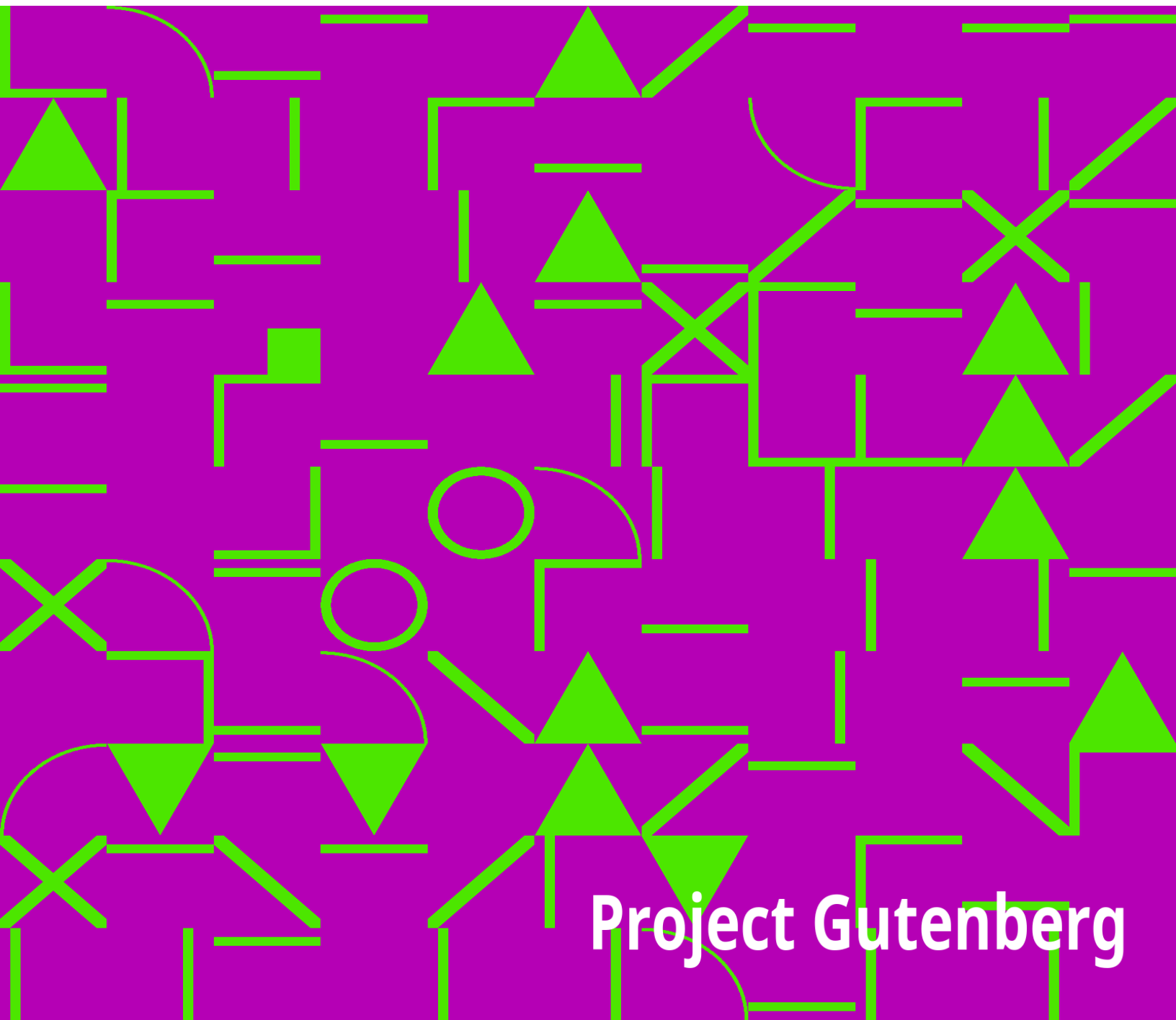


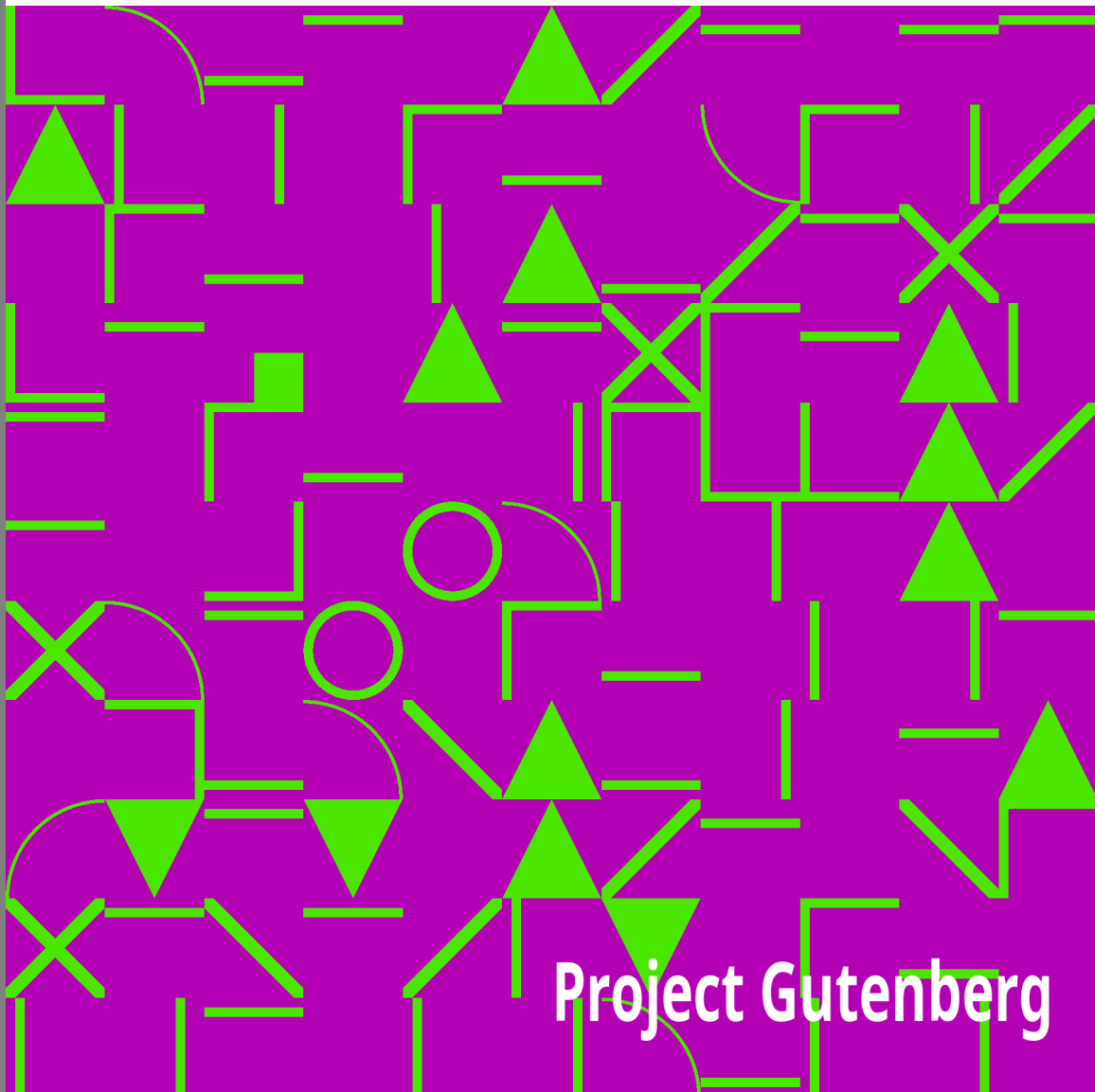
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An abstract geometric pattern consisting of various shapes like triangles, squares, circles, and lines in shades of blue, green, and yellow on a black background.

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THE THIRTY YEARS' WAR, 1618-19 ***

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THE LIFE AND DEATH of JOHN OF BARNEVELD, ADVOCATE OF
HOLLAND

WITH A VIEW OF THE PRIMARY CAUSES AND MOVEMENTS OF THE THIRTY
YEARS' WAR

By John Lothrop Motley, D.C.L., LL.D.

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Life and Death of John of Barneveld, v10, 1618-19

CHAPTER XIX.

Rancour between the Politico-Religious Parties—Spanish Intrigues
Inconsistency of James—Brewster and Robinson's Congregation at
Leyden—They decide to leave for America—Robinson's Farewell
Sermon
and Prayer at Parting.

During this dark and mournful winter the internal dissensions and, as a matter of course, the foreign intrigues had become more dangerous than ever. While the man who for a whole generation had guided the policy of the Republic and had been its virtual chief magistrate lay hidden from all men's sight, the troubles which he had sought to avert were not diminished by his removal from the scene. The extreme or Gomarist party which had taken a pride in secret conventicles where they were in a minority, determined, as they said, to separate Christ from Belial and, meditating the triumph which they had at last secured, now drove the Arminians from the great churches. Very soon it was impossible for these heretics to enjoy the rights of public worship anywhere. But they were not dismayed. The canons of Dordrecht had not yet been fulminated. They avowed themselves ready to sacrifice worldly goods and life itself in defence of the Five Points. In Rotterdam, notwithstanding a garrison of fifteen companies, more than a thousand Remonstrants assembled on Christmas-day in the Exchange for want of a more appropriate place of meeting and sang the 112th Psalm in mighty chorus. A clergyman of their persuasion accidentally passing through the street was forcibly laid hands upon and obliged to preach to them, which he did with great unction. The magistracy, where now the Contra-Remonstrants had the control, forbade, under severe penalties, a repetition of such scenes. It was impossible not to be reminded of the days half a century before, when the early Reformers had met in the open fields or among the dunes, armed to the teeth, and with outlying pickets to warn the congregation of the approach of Red Rod and the functionaries of the Holy Inquisition.

In Schoonhoven the authorities attempted one Sunday by main force to induct a Contra-Remonstrant into the pulpit from which a Remonstrant had just been expelled. The women of the place turned out with their distaffs and beat them from the field. The garrison was called out, and there was a pitched battle in the streets between soldiers, police officers, and women, not much to the edification certainly of the Sabbath-loving community on either side, the victory remaining with the ladies.

In short it would be impossible to exaggerate the rancour felt between the different politico-religious parties. All heed for the great war now raging in the outside world between the hostile elements of Catholicism and Protestantism, embattled over an enormous space, was lost in the din of conflict among the respective supporters of conditional and unconditional damnation within the pale of the Reformed Church. The earthquake shaking Europe rolled unheeded, as it was of old said to have done at Cannae, amid the fierce shock of mortal foes in that narrow field.

The respect for authority which had so long been the distinguishing characteristic of the Netherlands seemed to have disappeared. It was difficult—now that the time-honoured laws and privileges in defence of which, and of liberty of worship included in them, the Provinces had made war forty years long had been trampled upon by military force—for those not warmed by the fire of Gomar to feel their ancient respect for the magistracy. The magistracy at that moment seemed to mean the sword.

The Spanish government was inevitably encouraged by the spectacle thus presented. We have seen the strong hopes entertained by the council at Madrid, two years before the crisis now existing had occurred. We have witnessed the eagerness with which the King indulged the dream of recovering the sovereignty which his father had lost, and the vast schemes which he nourished towards that purpose, founded on the internal divisions

which were reducing the Republic to impotence. Subsequent events had naturally made him more sanguine than ever. There was now a web of intrigue stretching through the Provinces to bring them all back under the sceptre of Spain. The imprisonment of the great stipendiary, the great conspirator, the man who had sold himself and was on the point of selling his country, had not terminated those plots. Where was the supposed centre of that intrigue? In the council of state of the Netherlands, ever fiercely opposed to Barneveld and stuffed full of his mortal enemies. Whose name was most familiar on the lips of the Spanish partisans engaged in these secret schemes? That of Adrian Manmaker, President of the Council, representative of Prince Maurice as first noble of Zealand in the States-General, chairman of the committee sent by that body to Utrecht to frustrate the designs of the Advocate, and one of the twenty-four commissioners soon to be appointed to sit in judgment upon him.

The tale seems too monstrous for belief, nor is it to be admitted with certainty, that Manmaker and the other councillors implicated had actually given their adhesion to the plot, because the Spanish emissaries in their correspondence with the King assured him of the fact. But if such a foundation for suspicion could have been found against Barneveld and his friends, the world would not have heard the last of it from that hour to this.

It is superfluous to say that the Prince was entirely foreign to these plans. He had never been mentioned as privy to the little arrangements of Councillor du Agean and others, although he was to benefit by them. In the Spanish schemes he seems to have been considered as an impediment, although indirectly they might tend to advance him.

"We have managed now, I hope, that his Majesty will be recognized as sovereign of the country," wrote the confidential agent of the King of Spain in the Netherlands, Emmanuel Sueyro, to the government of Madrid. "The

English will oppose it with all their strength. But they can do nothing except by making Count Maurice sovereign of Holland and duke of Julich and Cleve. Maurice will also contrive to make himself master of Wesel, so it is necessary for the Archduke to be beforehand with him and make sure of the place. It is also needful that his Majesty should induce the French government to talk with the Netherlands and convince them that it is time to prolong the Truce."

This was soon afterwards accomplished. The French minister at Brussels informed Archduke Albert that du Maurier had been instructed to propose the prolongation, and that he had been conferring with the Prince of Orange and the States-General on the subject. At first the Prince had expressed disinclination, but at the last interview both he and the States had shown a desire for it, and the French King had requested from the Archduke a declaration whether the Spanish government would be willing to treat for it. In such case Lewis would offer himself as mediator and do his best to bring about a successful result.

But it was not the intention of the conspirators in the Netherlands that the Truce should be prolonged. On the contrary the negotiation for it was merely to furnish the occasion for fully developing their plot. "The States and especially those of Zealand will reply that they no longer wish the Truce," continued Sueyro, "and that they would prefer war to such a truce. They desire to put ships on the coast of Flanders, to which the Hollanders are opposed because it would be disagreeable to the French. So the Zealanders will be the first to say that the Netherlands must come back to his Majesty. This their President Hanmaker has sworn. The States of Overijssel will likewise give their hand to this because they say they will be the first to feel the shock of the war. Thus we shall very easily carry out our design, and as we shall concede to the Zealanders their demands in regard

to the navigation they at least will place themselves under the dominion of his Majesty as will be the case with Friesland as well as Overijssel."

It will be observed that in this secret arrangement for selling the Republic to its ancient master it was precisely the Provinces and the politicians most steadily opposed to Barneveld that took the lead. Zealand, Friesland, Overijssel were in the plot, but not a word was said of Utrecht. As for Holland itself, hopes were founded on the places where hatred to the Advocate was fiercest.

"Between ourselves," continued the agent, "we are ten here in the government of Holland to support the plan, but we must not discover ourselves for fear of suffering what has happened to Barneveld."

He added that the time for action had not yet come, and that if movements were made before the Synod had finished its labours, "The Gomarists would say that they were all sold." He implored the government at Madrid to keep the whole matter for the present profoundly secret because "Prince Maurice and the Gomarists had the forces of the country at their disposition." In case the plot was sprung too suddenly therefore, he feared that with the assistance of England Maurice might, at the head of the Gomarists and the army, make himself sovereign of Holland and Duke of Cleve, while he and the rest of the Spanish partisans might be in prison with Barneveld for trying to accomplish what Barneveld had been trying to prevent.

The opinions and utterances of such a man as James I. would be of little worth to our history had he not happened to occupy the place he did. But he was a leading actor in the mournful drama which filled up the whole period of the Twelve Years' Truce. His words had a direct influence on great events. He was a man of unquestionable erudition, of powers of mind above the average, while the absolute deformity of his moral constitution made

him incapable of thinking, feeling, or acting rightly on any vital subject, by any accident or on any occasion. If there were one thing that he thoroughly hated in the world, it was the Reformed religion. If in his thought there were one term of reproach more loathsome than another to be applied to a human creature, it was the word Puritan. In the word was subversion of all established authority in Church and State—revolution, republicanism, anarchy. "There are degrees in Heaven," he was wont to say, "there are degrees in Hell, there must be degrees on earth."

He forbade the Calvinist Churches of Scotland to hold their customary Synod in 1610, passionately reviling them and their belief, and declaring "their aim to be nothing else than to deprive kings and princes of their sovereignty, and to reduce the whole world to a popular form of government where everybody would be master."

When the Prince of Neuburg embraced Catholicism, thus complicating matters in the duchies and strengthening the hand of Spain and the Emperor in the debateable land, he seized the occasion to assure the agent of the Archduke in London, Councillor Boissetot, of his warm Catholic sympathies. "They say that I am the greatest heretic in the world!" he exclaimed; "but I will never deny that the true religion is that of Rome even if corrupted." He expressed his belief in the real presence, and his surprise that the Roman Catholics did not take the chalice for the blood of Christ. The English bishops, he averred, drew their consecration through the bishops in Mary Tudor's time from the Pope.

As Philip II., and Ferdinand II. echoing the sentiments of his illustrious uncle, had both sworn they would rather reign in a wilderness than tolerate a single heretic in their dominions, so James had said "he would rather be a hermit in a forest than a king over such people as the pack of Puritans were who overruled the lower house."

For the Netherlands he had an especial hatred, both as rebels and Puritans. Soon after coming to the English throne he declared that their revolt, which had been going on all his lifetime and of which he never expected to see the end, had begun by petition for matters of religion. "His mother and he from their cradles," he said, "had been haunted with a Puritan devil, which he feared would not leave him to his grave. And he would hazard his crown but he would suppress those malicious spirits." It seemed a strange caprice of Destiny that assigned to this hater of Netherlands, of Puritans, and of the Reformed religion, the decision of disputed points between Puritans and anti-Puritans in the Reformed Church of the Netherlands.

It seemed stranger that his opinions should be hotly on the side of the Puritans.

Barneveld, who often used the expression in later years, as we have seen in his correspondence, was opposed to the Dutch Puritans because they had more than once attempted subversion of the government on pretext of religion, especially at the memorable epoch of Leicester's government.

The business of stirring up these religious conspiracies against the magistracy he was apt to call "Flanderizing," in allusion to those disastrous days and to the origin of the ringleaders in those tumults. But his main object, as we have seen, was to effect compromises and restore good feeling between members of the one church, reserving the right of disposing over religious matters to the government of the respective provinces.

But James had remedied his audacious inconsistency by discovering that Puritanism in England and in the Netherlands resembled each other no more than certain letters transposed into totally different words meant one and the same thing. The anagrammatic argument had been neatly put by Sir Dudley Carleton, convincing no man. Puritanism in England "denied the right of

human invention or imposition in religious matters." Puritanism in the Netherlands denied the right of the legal government to impose its authority in religious matters. This was the great matter of debate in the Provinces. In England the argument had been settled very summarily against the Puritans by sheriffs' officers, bishops' pursuivants, and county jails.

As the political tendencies, so too the religious creed and observances of the English Puritans were identical with that of the Contra- Remonstrants, whom King James had helped to their great triumph. This was not very difficult to prove. It so happened that there were some English Puritans living at that moment in Leyden. They formed an independent society by themselves, which they called a Congregational Church, and in which were some three hundred communicants. The length of their residence there was almost exactly coeval with the Twelve Years' Truce. They knew before leaving England that many relics of the Roman ceremonial, with which they were dissatisfied, and for the discontinuance of which they had in vain petitioned the crown—the ring, the sign of the cross, white surplices, and the like—besides the whole hierarchical system, had been disused in the Reformed Churches of France, Switzerland, and the United Provinces, where the forms of worship in their view had been brought more nearly to the early apostolic model. They admitted for truth the doctrinal articles of the Dutch Reformed Churches. They had not come to the Netherlands without cause. At an early period of King James's reign this congregation of seceders from the establishment had been wont to hold meetings at Scrooby in Nottinghamshire, once a manor of the Archbishop of York, but then the residence of one William Brewster. This was a gentleman of some fortune, educated at Cambridge, a good scholar, who in Queen Elizabeth's time had been in the service of William Davison when Secretary of State. He seemed to have been a confidential private secretary of that excellent and unlucky statesman, who found him so discreet and faithful as to deserve employment before all others in matters of trust and secrecy. He was

esteemed by Davison "rather as a son than a servant," and he repaid his confidence by doing him many faithful offices in the time of his troubles. He had however long since retired from connection with public affairs, living a retired life, devoted to study, meditation, and practical exertion to promote the cause of religion, and in acts of benevolence sometimes beyond his means.

The pastor of the Scrooby Church, one John Robinson, a graduate of Cambridge, who had been a benefited clergyman in Norfolk, was a man of learning, eloquence, and lofty intellect. But what were such good gifts in the possession of rebels, seceders, and Puritans? It is needless to say that Brewster and Robinson were baited, persecuted, watched day and night, some of the congregation often clapped into prison, others into the stocks, deprived of the means of livelihood, outlawed, famished, banned. Plainly their country was no place for them. After a few years of such work they resolved to establish themselves in Holland, where at least they hoped to find refuge and toleration.

But it proved as difficult for them to quit the country as to remain in it. Watched and hunted like gangs of coiners, forgers, or other felons attempting to flee from justice, set upon by troopers armed with "bills and guns and other weapons," seized when about to embark, pillaged and stripped by catchpoles, exhibited as a show to grinning country folk, the women and children dealt with like drunken tramps, led before magistrates, committed to jail; Mr. Brewster and six other of the principal ones being kept in prison and bound over to the assizes; they were only able after attempts lasting through two years' time to effect their escape to Amsterdam. After remaining there a year they had removed to Leyden, which they thought "a fair and beautiful city, and of a sweet situation."

They settled in Leyden in the very year in which Arminius was buried beneath the pavement of St. Peter's Church in that town. It was the year too in which the Truce was signed. They were a singularly tranquil and brotherly community. Their pastor, who was endowed with remarkable gentleness and tact in dealing with his congregation, settled amicably all their occasional disputes. The authorities of the place held them up as a model. To a Walloon congregation in which there were many troublesome and litigious members they said: "These English have lived among us ten years, and yet we never had any suit or accusation against any of them, but your quarrels are continual."

Although many of them were poor, finding it difficult to earn their living in a foreign land among people speaking a strange tongue, and with manners and habits differing from their own, and where they were obliged to learn new trades, having most of them come out of an agricultural population, yet they enjoyed a singular reputation for probity. Bakers and butchers and the like willingly gave credit to the poorest of these English, and sought their custom if known to be of the congregation. Mr. Brewster, who had been reduced almost to poverty by his charities and munificent aid to his struggling brethren, earned his living by giving lessons in English, having first composed a grammar according to the Latin model for the use of his pupils. He also set up a printing establishment, publishing many controversial works prohibited in England, a proceeding which roused the wrath of Carleton, impelling him to do his best to have him thrown into prison.

It was not the first time that this plain, mechanical, devout Englishman, now past middle age, had visited the Netherlands. More than twenty-five years before he had accompanied William Davison on his famous embassy to the States, as private secretary.

When the keys of Flushing, one of the cautionary towns, were committed to the Ambassador, he confided them to the care of Brewster, who slept with them under his pillow. The gold chain which Davison received as a present from the provincial government on leaving the country was likewise placed in his keeping, with orders to wear it around his neck until they should appear before the Queen. To a youth of ease and affluence, familiar with ambassadors and statesmen and not unknown at courts, had succeeded a mature age of obscurity, deep study, and poverty. No human creature would have heard of him had his career ended with his official life. Two centuries and a half have passed away and the name of the outlawed Puritan of Scrooby and Leyden is still familiar to millions of the English race.

All these Englishmen were not poor. Many of them occupied houses of fair value, and were admitted to the freedom of the city. The pastor with three of his congregation lived in a comfortable mansion, which they had purchased for the considerable sum of 8000 florins, and on the garden of which they subsequently erected twenty-one lesser tenements for the use of the poorer brethren.

Mr. Robinson was himself chosen a member of the famous university and admitted to its privileges. During his long residence in Leyden, besides the daily care of his congregation, spiritual and temporal, he wrote many learned works.

Thus the little community, which grew gradually larger by emigration from England, passed many years of tranquillity. Their footsteps were not dogged by constables and pursuivants, they were not dragged daily before the magistrates, they were not thrown into the town jails, they were not hunted from place to place with bows and bills and mounted musketeers. They gave offence to none, and were respected by all. "Such was their singleheartedness and sincere affection one towards another," says their

historian and magistrate, "that they came as near the primitive pattern of the first churches as any other church of these later times has done, according to their rank and quality."

Here certainly were English Puritans more competent than any men else in the world to judge if it were a slander upon the English government to identify them with Dutch Puritans. Did they sympathize with the party in Holland which the King, who had so scourged and trampled upon themselves in England, was so anxious to crush, the hated Arminians? Did they abhor the Contra-Remonstrants whom James and his ambassador Carleton doted upon and whom Barneveld called "Double Puritans" and "Flanderizers?"

Their pastor may answer for himself and his brethren.

"We profess before God and men," said Robinson in his Apologia, "that we agree so entirely with the Reformed Dutch Churches in the matter of religion as to be ready to subscribe to all and each of their articles exactly as they are set forth in the Netherland Confession. We acknowledge those Reformed Churches as true and genuine, we profess and cultivate communion with them as much as in us lies. Those of us who understand the Dutch language attend public worship under their pastors. We administer the Holy Supper to such of their members as, known to us, appear at our meetings." This was the position of the Puritans. Absolute, unqualified accordance with the Contra-Remonstrants.

As the controversy grew hot in the university between the Arminians and their adversaries, Mr. Robinson, in the language of his friend Bradford, became "terrible to the Arminians who so greatly molested the whole state and that city in particular."

When Episcopius, the Arminian professor of theology, set forth sundry theses, challenging all the world to the onset, it was thought that "none was fitter to buckle with them" than Robinson. The orthodox professor Polyander so importuned the English Puritan to enter the lists on behalf of the Contra-Remonstrants that at last he consented and overthrew the challenger, horse and man, in three successive encounters. Such at least was the account given by his friend and admirer the historian. "The Lord did so help him to defend the truth and foil this adversary as he put him to an apparent nonplus in this great and public audience. And the like he did a second or third time upon such like occasions," said Bradford, adding that, if it had not been for fear of offending the English government, the university would have bestowed preferments and honours upon the champion.

We are concerned with this ancient and exhausted controversy only for the intense light it threw, when burning, on the history which occupies us.

Of the extinct volcano itself which once caused such devastation, and in which a great commonwealth was well-nigh swallowed up, little is left but slag and cinders. The past was made black and barren with them. Let us disturb them as little as possible.

The little English congregation remained at Leyden till toward the end of the Truce, thriving, orderly, respected, happy. They were witnesses to the tumultuous, disastrous, and tragical events which darkened the Republic in those later years, themselves unobserved and unmolested. Not a syllable seems to remain on record of the views or emotions which may have been excited by those scenes in their minds, nor is there a trace left on the national records of the Netherlands of their protracted residence on the soil.

They got their living as best they might by weaving, printing, spinning, and other humble trades; they borrowed money on mortgages, they built

houses, they made wills, and such births, deaths, and marriages as occurred among them were registered by the town-clerk.

And at last for a variety of reasons they resolved to leave the Netherlands. Perhaps the solution of the problem between Church and State in that country by the temporary subjection of State to Church may have encouraged them to realize a more complete theocracy, if a sphere of action could be found where the experiment might be tried without a severe battle against time-hallowed institutions and vested rights. Perhaps they were appalled by the excesses into which men of their own religious sentiments had been carried by theological and political passion. At any rate depart they would; the larger half of the congregation remaining behind however till the pioneers should have broken the way, and in their own language "laid the stepping-stones."

They had thought of the lands beneath the Equator, Raleigh having recently excited enthusiasm by his poetical descriptions of Guiana. But the tropical scheme was soon abandoned. They had opened negotiations with the Stadholder and the States-General through Amsterdam merchants in regard to settling in New Amsterdam, and offered to colonize that country if assured of the protection of the United Provinces. Their petition had been rejected. They had then turned their faces to their old master and their own country, applying to the Virginia Company for a land-patent, which they were only too happy to promise, and to the King for liberty of religion in the wilderness confirmed under his broad seal, which his Majesty of course refused. It was hinted however that James would connive at them and not molest them if they carried themselves peaceably. So they resolved to go without the seal, for, said their magistrate very wisely, "if there should be a purpose or desire to wrong them, a seal would not serve their turn though it were as broad as the house-floor."

Before they left Leyden, their pastor preached to them a farewell sermon, which for loftiness of spirit and breadth of vision has hardly a parallel in that age of intolerance. He laid down the principle that criticism of the Scriptures had not been exhausted merely because it had been begun; that the human conscience was of too subtle a nature to be imprisoned for ever in formulas however ingeniously devised; that the religious reformation begun a century ago was not completed; and that the Creator had not necessarily concluded all His revelations to mankind.

The words have long been familiar to students of history, but they can hardly be too often laid to heart.

Noble words, worthy to have been inscribed over the altar of the first church to be erected by the departing brethren, words to bear fruit after centuries should go by. Had not the deeply injured and misunderstood Grotius already said, "If the trees we plant do not shade us, they will yet serve for our descendants?"

Yet it is passing strange that the preacher of that sermon should be the recent champion of the Contra-Remonstrants in the great controversy; the man who had made himself so terrible to the pupils of the gentle and tolerant Arminius.

And thus half of that English congregation went down to Delftshaven, attended by the other half who were to follow at a later period with their beloved pastor. There was a pathetic leave-taking. Even many of the Hollanders, mere casual spectators, were in tears.

Robinson, kneeling on the deck of the little vessel, offered a prayer and a farewell. Who could dream that this departure of an almost nameless band of emigrants to the wilderness was an epoch in the world's history? Yet these were the Pilgrim Fathers of New England, the founders of what was

to be the mightiest republic of modern history, mighty and stable because it had been founded upon an idea.

They were not in search of material comfort and the chances of elevating their condition, by removing from an overpeopled country to an organized Commonwealth, offering a wide field for pauper labourers. Some of them were of good social rank and highest education, most of them in decent circumstances, none of them in absolute poverty. And a few years later they were to be joined by a far larger company with leaders and many brethren of ancient birth and landed possessions, men of "education, figure; and estate," all ready to convert property into cash and to place it in joint-stock, not as the basis of promising speculation, but as the foundation of a church.

It signifies not how much or how little one may sympathize with their dogma or their discipline now. To the fact that the early settlement of that wilderness was by self-sacrificing men of earnestness and faith, who were bent on "advancing the Gospel of Christ in remote parts of the world," in the midst of savage beasts, more savage men, and unimaginable difficulties and dangers, there can be little doubt that the highest forms of Western civilization are due. Through their provisional theocracy, the result of the independent church system was to establish the true purport of the Reformation, absolute religious equality. Civil and political equality followed as a matter of course.

Two centuries and a half have passed away.

There are now some seventy or eighty millions of the English-speaking race on both sides the Atlantic, almost equally divided between the United Kingdom and the United Republic, and the departure of those outcasts of James has interest and significance for them all.

Most fitly then, as a distinguished American statesman has remarked, does that scene on board the little English vessel, with the English pastor uttering his farewell blessing to a handful of English exiles for conscience sake; depicted on canvas by eminent artists, now adorn the halls of the American Congress and of the British Parliament. Sympathy with one of the many imperishable bonds of union between the two great and scarcely divided peoples.

We return to Barneveld in his solitary prison.

CHAPTER XX.

Barneveld's Imprisonment—Ledenberg's Examination and Death—
Remonstrance of De Boississe—Aerssens admitted to the order of
Knights—Trial of the Advocate—Barneveld's Defence—The States
proclaim a Public Fast—Du Maurier's Speech before the Assembly—
Barneveld's Sentence—Barneveld prepares for Death—Goes to
Execution.

The Advocate had been removed within a few days after the arrest from the chamber in Maurice's apartments, where he had originally been confined, and was now in another building.

It was not a dungeon nor a jail. Indeed the commonplace and domestic character of the scenery in which these great events were transacted has in it something pathetic. There was and still remains a two-storied structure, then of modern date, immediately behind the antique hall of the old Counts within the Binnenhof. On the first floor was a courtroom of considerable extent, the seat of one of the chief tribunals of justice. The story above was divided into three chambers with a narrow corridor on each side. The first chamber, on the north-eastern side, was appropriated for the judges when the state prisoners should be tried. In the next Hugo Grotius was imprisoned. In the third was Barneveld. There was a tower at the north-east angle of the building, within which a winding and narrow staircase of stone

led up to the corridor and so to the prisoners' apartments. Rombout Hoogerbeets was confined in another building.

As the Advocate, bent with age and a life of hard work, and leaning on his staff, entered the room appropriated to him, after toiling up the steep staircase, he observed—

"This is the Admiral of Arragon's apartment."

It was true. Eighteen years before, the conqueror of Nieuwpoort had assigned this lodging to the chief prisoner of war in that memorable victory over the Spaniards, and now Maurice's faithful and trusted counsellor at that epoch was placed in durance here, as the result of the less glorious series of victories which had just been achieved.

It was a room of moderate dimensions, some twenty-five feet square, with a high vaulted roof and decently furnished. Below and around him in the courtyard were the scenes of the Advocate's life-long and triumphant public services. There in the opposite building were the windows of the beautiful "Hall of Truce," with its sumptuous carvings and gildings, its sculptures and portraits, where he had negotiated with the representatives of all the great powers of Christendom the famous Treaty which had suspended the war of forty years, and where he was wont almost daily to give audience to the envoys of the greatest sovereigns or the least significant states of Europe and Asia, all of whom had been ever solicitous of his approbation and support.

Farther along in the same building was the assembly room of the States-General, where some of the most important affairs of the Republic and of Europe had for years been conducted, and where he had been so indispensable that, in the words of a contemporary who loved him not,

"absolutely nothing could be transacted in his absence, all great affairs going through him alone."

There were two dull windows, closely barred, looking northward over an irregular assemblage of tile-roofed houses and chimney-stacks, while within a stone's throw to the west, but unseen, was his own elegant mansion on the Voorhout, surrounded by flower gardens and shady pleasure grounds, where now sat his aged wife and her children all plunged in deep affliction.

He was allowed the attendance of a faithful servant, Jan Franken by name, and a sentinel stood constantly before his door. His papers had been taken from him, and at first he was deprived of writing materials.

He had small connection with the outward world. The news of the municipal revolution which had been effected by the Stadholder had not penetrated to his solitude, but his wife was allowed to send him fruit from their garden. One day a basket of fine saffron pears was brought to him. On slicing one with a knife he found a portion of a quill inside it. Within the quill was a letter on thinnest paper, in minutest handwriting in Latin. It was to this effect.

"Don't rely upon the States of Holland, for the Prince of Orange has changed the magistracies in many cities. Dudley Carleton is not your friend."

A sergeant of the guard however, before bringing in these pears, had put a couple of them in his pocket to take home to his wife. The letter, copies of which perhaps had been inserted for safety in several of them, was thus discovered and the use of this ingenious device prevented for the future.

Secretary Ledenberg, who had been brought to the Hague in the early days of September, was the first of the prisoners subjected to examination.

He was much depressed at the beginning of it, and is said to have exclaimed with many sighs, "Oh Barneveld, Barneveld, what have you brought us to!"

He confessed that the Waartgelders at Utrecht had been enlisted on notification by the Utrecht deputies in the Hague with knowledge of Barneveld, and in consequence of a resolution of the States in order to prevent internal tumults. He said that the Advocate had advised in the previous month of March a request to the Prince not to come to Utrecht; that the communication of the message, in regard to disbanding the Waartgelders, to his Excellency had been postponed after the deputies of the States of Holland had proposed a delay in that disbandment; that those deputies had come to Utrecht of their own accord; . . . that they had judged it possible to keep everything in proper order in Utrecht if the garrison in the city paid by Holland were kept quiet, and if the States of Utrecht gave similar orders to the Waartgelders; for they did not believe that his Excellency would bring in troops from the outside. He said that he knew nothing of a new oath to be demanded of the garrison. He stated that the Advocate, when at Utrecht, had exhorted the States, according to his wont, to maintain their liberties and privileges, representing to them that the right to decide on the Synod and the Waartgelders belonged to them. Lastly, he denied knowing who was the author of *The Balance*, except by common report.

Now these statements hardly amounted to a confession of abominable and unpardonable crimes by Ledenberg, nor did they establish a charge of high-treason and corrupt correspondence with the enemy against Barneveld. It is certain that the extent of the revelations seemed far from satisfactory to the accusers, and that some pressure would be necessary in order to extract anything more conclusive. Lieutenant Nythof told Grotius that Ledenberg had accordingly been threatened with torture, and that the executioner had

even handled him for that purpose. This was however denied by the judges of instruction who had been charged with the preliminary examination.

That examination took place on the 27th September. After it had been concluded, Ledenberg prayed long and earnestly on returning to prison. He then entrusted a paper written in French to his son Joost, a boy of eighteen, who did not understand that language. The youth had been allowed to keep his father company in his confinement, and slept in the same room.

The next night but one, at two o'clock, Joost heard his father utter a deep groan. He was startled, groped in the darkness towards his bed and felt his arm, which was stone cold. He spoke to him and received no answer. He gave the alarm, the watch came in with lights, and it was found that Ledenberg had given himself two mortal wounds in the abdomen with a penknife and then cut his throat with a table-knife which he had secreted, some days before, among some papers.

The paper in French given to his son was found to be to this effect.

"I know that there is an inclination to set an example in my person, to confront me with my best friends, to torture me, afterwards to convict me of contradictions and falsehoods as they say, and then to found an ignominious sentence upon points and trifles, for this it will be necessary to do in order to justify the arrest and imprisonment. To escape all this I am going to God by the shortest road. Against a dead man there can be pronounced no sentence of confiscation of property. Done 17th September (o. s.) 1618."

The family of the unhappy gentleman begged his body for decent burial. The request was refused. It was determined to keep the dead secretary above ground and in custody until he could be tried, and, if possible, convicted and punished. It was to be seen whether it were so easy to baffle the power of the States-General, the Synod, and the Stadholder, and

whether "going to God by the shortest road" was to save a culprit's carcass from ignominy, and his property from confiscation.

The French ambassadors, who had been unwearied in their endeavour to restore harmony to the distracted Commonwealth before the arrest of the prisoners, now exerted themselves to throw the shield of their sovereign's friendship around the illustrious statesman and his fellow-sufferers.

"It is with deepest sorrow," said de Boississe, "that I have witnessed the late hateful commotions. Especially from my heart I grieve for the arrest of the Seignior Barneveld, who with his discretion and wise administration for the past thirty years has so drawn the hearts of all neighbouring princes to himself, especially that of the King my master, that on taking up my pen to apprise him of these events I am gravely embarrassed, fearing to infringe on the great respect due to your Mightinesses or against the honour and merits of the Seignior Barneveld. . . . My Lords, take heed to your situation, for a great discontent is smouldering among your citizens. Until now, the Union has been the chief source of your strength. And I now fear that the King my master, the adviser of your renowned Commonwealth, maybe offended that you have taken this resolution after consulting with others, and without communicating your intention to his ambassador It is but a few days that an open edict was issued testifying to the fidelity of Barneveld, and can it be possible that within so short a time you have discovered that you have been deceived? I summon you once more in the name of the King to lay aside all passion, to judge these affairs without partiality, and to inform me what I am to say to the King. Such very conflicting accounts are given of these transactions that I must beg you to confide to me the secret of the affair. The wisest in the land speak so strongly of these proceedings that it will be no wonder if the King my master should give me orders to take the Seignior Barneveld under his protection. Should this prove to be the case, your Lordships will excuse my course . . . I beg you earnestly in your

wisdom not to give cause of offence to neighbouring princes, especially to my sovereign, who wishes from his heart to maintain your dignity and interests and to assure you of his friendship."

The language was vigorous and sincere, but the Ambassador forgot that the France of to-day was not the France of yesterday; that Louis XIII. was not Henry IV.; that it was but a cheerful fiction to call the present King the guide and counsellor of the Republic, and that, distraught as she was by the present commotions, her condition was strength and tranquillity compared with the apparently decomposing and helpless state of the once great kingdom of France. De Boississe took little by his demonstration.

On the 12th December both de Boississe and du Maurier came before the States-General once more, and urged a speedy and impartial trial for the illustrious prisoners. If they had committed acts of treason and rebellion, they deserved exemplary punishment, but the ambassadors warned the States-General with great earnestness against the dangerous doctrine of constructive treason, and of confounding acts dictated by violence of party spirit at an excited period with the crime of high-treason against the sovereignty of the State.

"Barneveld so honourable," they said, "for his immense and long continued services has both this Republic and all princes and commonwealths for his witnesses. It is most difficult to believe that he has attempted the destruction of his fatherland, for which you know that he has toiled so faithfully."

They admitted that so grave charges ought now to be investigated. "To this end," said the ambassadors, "you ought to give him judges who are neither suspected nor impassioned, and who will decide according to the laws of the land, and on clear and undeniable evidence So doing you

will show to the whole world that you are worthy to possess and to administer this Commonwealth to whose government God has called you."

Should they pursue another and a sterner course, the envoys warned the Assembly that the King would be deeply offended, deeming it thus proved how little value they set upon his advice and his friendship.

The States-General replied on the 19th December, assuring the ambassadors that the delay in the trial was in order to make the evidence of the great conspiracy complete, and would not tend to the prejudice of the prisoners "if they had a good consciousness of their innocence." They promised that the sentence upon them when pronounced would give entire satisfaction to all their allies and to the King of France in particular, of whom they spoke throughout the document in terms of profound respect. But they expressed their confidence that "his Majesty would not place the importunate and unfounded solicitations of a few particular criminals or their supporters before the general interests of the dignity and security of the Republic."

On the same day the States-General addressed a letter filled with very elaborate and courteous commonplaces to the King, in which they expressed a certainty that his Majesty would be entirely satisfied with their actions.

The official answer of the States-General to the ambassadors, just cited, gave but little comfort to the friends of the imprisoned statesman and his companions. Such expressions as "ambitious and factious spirits,"—"authors and patrons of the faction,"—"attempts at novelty through changes in religion, in justice and in the fundamental laws of all orders of polity," and the frequent mention of the word "conspiracy" boded little good.

Information of this condition of affairs was conveyed to Hoogerbeets and Grotius by means of an ingenious device of the distinguished scholar, who was then editing the Latin works of the Hague poet, Janus Secundus.

While the sheets were going through the press, some of the verses were left out, and their place supplied by others conveying the intelligence which it was desired to send to the prisoners. The pages which contained the secret were stitched together in such wise that in cutting the book open they were not touched but remained closed. The verses were to this effect. "The examination of the Advocate proceeds slowly, but there is good hope from the serious indignation of the French king, whose envoys are devoted to the cause of the prisoners, and have been informed that justice will be soon rendered. The States of Holland are to assemble on the 15th January, at which a decision will certainly be taken for appointing judges. The preachers here at Leyden are despised, and men are speaking strongly of war. The tumult which lately occurred at Rotterdam may bring forth some good."

The quick-witted Grotius instantly discovered the device, read the intelligence thus communicated in the proofsheets of Secundus, and made use of the system to obtain further intelligence.

Hoogerbeets laid the book aside, not taking much interest at that time in the works of the Hague poet. Constant efforts made to attract his attention to those poems however excited suspicion among his keepers, and the scheme was discovered before the Leyden pensionary had found the means to profit by it.'

The allusions to the trial of the Advocate referred to the preliminary examination which took place, like the first interrogatories of Grotius and Hoogerbeets, in the months of November and December.

The thorough manner in which Maurice had reformed the States of Holland has been described. There was one department of that body however which still required attention. The Order of Knights, small in number but potential in influence, which always voted first on great occasions, was still through a majority of its members inclined to Barneveld. Both his sons-in-law had seats in that college. The Stadholder had long believed in a spirit of hostility on the part of those nobles towards himself. He knew that a short time before this epoch there had been a scheme for introducing his young brother, Frederic Henry, into the Chamber of Knights. The Count had become proprietor of the barony of Naaldwyk, a property which he had purchased of the Counts of Arenberg, and which carried with it the hereditary dignity of Great Equerry of the Counts of Holland. As the Counts of Holland had ceased to exist, although their sovereignty had nearly been revived and conferred upon William the Silent, the office of their chief of the stables might be deemed a sinecure. But the jealousy of Maurice was easily awakened, especially by any movement made or favoured by the Advocate. He believed that in the election of Frederic Henry as a member of the College of Knights a plan lay concealed to thrust him into power and to push this elder brother from his place. The scheme, if scheme it were, was never accomplished, but the Prince's rancour remained.

He now informed the nobles that they must receive into their body Francis Aerssens, who had lately purchased the barony of Sommelsdyk, and Daniel de Hartaing, Seigneur of Marquette. With the presence of this deadly enemy of Barneveld and another gentleman equally devoted to the Stadholder's interest it seemed probable that the refractory majority of the board of nobles would be overcome. But there were grave objections to the admission of these new candidates. They were not eligible. The constitution of the States and of the college of nobles prescribed that Hollanders only of ancient and noble race and possessing estates in the province could sit in

that body. Neither Aerssens nor Hartaing was born in Holland or possessed of the other needful qualifications. Nevertheless, the Prince, who had just remodelled all the municipalities throughout the Union which offered resistance to his authority, was not to be checked by so trifling an impediment as the statutes of the House of Nobles. He employed very much the same arguments which he had used to "good papa" Hooft. "This time it must be so." Another time it might not be necessary. So after a controversy which ended as controversies are apt to do when one party has a sword in his hand and the other is seated at a green-baize-covered table, Sommelsdyk and Marquette took their seats among the knights. Of course there was a spirited protest. Nothing was easier for the Stadholder than to concede the principle while trampling it with his boot-heels in practice.

"Whereas it is not competent for the said two gentlemen to be admitted to our board," said the nobles in brief, "as not being constitutionally eligible, nevertheless, considering the strong desire of his Excellency the Prince of Orange, we, the nobles and knights of Holland, admit them with the firm promise to each other by noble and knightly faith ever in future for ourselves and descendants to maintain the privileges of our order now violated and never again to let them be directly or indirectly infringed."

And so Aerssens, the unscrupulous plotter, and dire foe of the Advocate and all his house, burning with bitter revenge for all the favours he had received from him during many years, and the author of the venomous pamphlets and diatribes which had done so much of late to blacken the character of the great statesman before the public, now associated himself officially with his other enemies, while the preliminary proceedings for the state trials went forward.

Meantime the Synod had met at Dordrecht. The great John Bogerman, with fierce, handsome face, beak and eye of a bird of prey, and a deluge of

curly brown beard reaching to his waist, took his seat as president. Short work was made with the Armenians. They and their five Points were soon thrust out into outer darkness.

It was established beyond all gainsaying that two forms of Divine worship in one country were forbidden by God's Word, and that thenceforth by Netherland law there could be but one religion, namely, the Reformed or Calvinistic creed.

It was settled that one portion of the Netherlanders and of the rest of the human race had been expressly created by the Deity to be for ever damned, and another portion to be eternally blessed. But this history has little to do with that infallible council save in the political effect of its decrees on the fate of Barneveld. It was said that the canons of Dordrecht were likely to shoot off the head of the Advocate. Their sessions and the trial of the Advocate were simultaneous, but not technically related to each other.

The conclusions of both courts were preordained, for the issue of the great duel between Priesthood and State had been decided when the military chieftain threw his sword into the scale of the Church.

There had been purposely a delay, before coming to a decision as to the fate of the state prisoners, until the work of the Synod should have approached completion.

It was thought good that the condemnation of the opinions of the Arminians and the chastisement of their leaders should go hand-in-hand.

On the 23rd April 1619, the canons were signed by all the members of the Synod. Arminians were pronounced heretics, schismatics, teachers of false doctrines. They were declared incapable of filling any clerical or

academical post. No man thenceforth was to teach children, lecture to adolescents, or preach to the mature, unless a subscriber to the doctrines of the unchanged, unchangeable, orthodox church. On the 30th April and 1st May the Netherland Confession and the Heidelberg Catechism were declared to be infallible. No change was to be possible in either formulary.

Schools and pulpits were inexorably bound to the only true religion.

On the 6th May there was a great festival at Dordrecht in honour of the conclusion of the Synod. The canons, the sentence, and long prayers and orations in Latin by President Bogerman gladdened the souls of an immense multitude, which were further enlivened by the decree that both Creed and Catechism had stood the test of several criticisms and come out unchanged by a single hair. Nor did the orator of the occasion forget to render thanks "to the most magnanimous King James of Great Britain, through whose godly zeal, fiery sympathy, and truly royal labour God had so often refreshed the weary Synod in the midst of their toil."

The Synod held one hundred and eighty sessions between the 13th November 1618 and 29th May 1619, all the doings of which have been recorded in chronicles innumerable. There need be no further mention of them here.

Barneveld and the companions of his fate remained in prison.

On the 7th March the trial of the great Advocate began. He had sat in prison since the 18th of the preceding August. For nearly seven months he had been deprived of all communication with the outward world save such atoms of intelligence as could be secretly conveyed to him in the inside of a quill concealed in a pear and by other devices. The man who had governed one of the most important commonwealths of the world for nearly a generation long—during the same period almost controlling the politics of

Europe—had now been kept in ignorance of the most insignificant everyday events. During the long summer-heat of the dog- days immediately succeeding his arrest, and the long, foggy, snowy, icy winter of Holland which ensued, he had been confined in that dreary garret-room to which he had been brought when he left his temporary imprisonment in the apartments of Prince Maurice.

There was nothing squalid in the chamber, nothing specially cruel or repulsive in the arrangements of his captivity. He was not in fetters, nor fed upon bread and water. He was not put upon the rack, nor even threatened with it as Ledenberg had been. He was kept in a mean, commonplace, meagerly furnished, tolerably spacious room, and he was allowed the services of his faithful domestic servant John Franken. A sentinel paced day and night up the narrow corridor before his door. As spring advanced, the notes of the nightingale came through the prison- window from the neighbouring thicket. One day John Franken, opening the window that his master might the better enjoy its song, exchanged greeting with a fellow-servant in the Barneveld mansion who happened to be crossing the courtyard. Instantly workmen were sent to close and barricade the windows, and it was only after earnest remonstrances and pledges that this resolve to consign the Advocate to darkness was abandoned.

He was not permitted the help of lawyer, clerk, or man of business. Alone and from his chamber of bondage, suffering from bodily infirmities and from the weakness of advancing age, he was compelled to prepare his defence against a vague, heterogeneous collection of charges, to meet which required constant reference, not only to the statutes, privileges, and customs of the country and to the Roman law, but to a thousand minute incidents out of which the history of the Provinces during the past dozen years or more had been compounded.

It is true that no man could be more familiar with the science and practice of the law than he was, while of contemporary history he was himself the central figure. His biography was the chronicle of his country. Nevertheless it was a fearful disadvantage for him day by day to confront two dozen hostile judges comfortably seated at a great table piled with papers, surrounded by clerks with bags full of documents and with a library of authorities and precedents duly marked and dog's-eared and ready to their hands, while his only library and chronicle lay in his brain. From day to day, with frequent intermissions, he was led down through the narrow turret-stairs to a wide chamber on the floor immediately below his prison, where a temporary tribunal had been arranged for the special commission.

There had been an inclination at first on the part of his judges to treat him as a criminal, and to require him to answer, standing, to the interrogatories propounded to him. But as the terrible old man advanced into the room, leaning on his staff, and surveying them with the air of haughty command habitual to him, they shrank before his glance; several involuntarily, rising uncovered, to salute him and making way for him to the fireplace about which many were standing that wintry morning.

He was thenceforth always accommodated with a seat while he listened to and answered 'ex tempore' the elaborate series of interrogatories which had been prepared to convict him.

Nearly seven months he had sat with no charges brought against him. This was in itself a gross violation of the laws of the land, for according to all the ancient charters of Holland it was provided that accusation should follow within six weeks of arrest, or that the prisoner should go free. But the arrest itself was so gross a violation of law that respect for it was hardly to be expected in the subsequent proceedings. He was a great officer of the States of Holland. He had been taken under their especial protection. He

was on his way to the High Council. He was in no sense a subject of the States-General. He was in the discharge of his official duty. He was doubly and trebly sacred from arrest. The place where he stood was on the territory of Holland and in the very sanctuary of her courts and House of Assembly. The States-General were only as guests on her soil, and had no domain or jurisdiction there whatever. He was not apprehended by any warrant or form of law. It was in time of peace, and there was no pretence of martial law. The highest civil functionary of Holland was invited in the name of its first military officer to a conference, and thus entrapped was forcibly imprisoned.

At last a board of twenty-four commissioners was created, twelve from Holland and two from each of the other six provinces. This affectation of concession to Holland was ridiculous. Either the law 'de non evocando'—according to which no citizen of Holland could be taken out of the province for trial—was to be respected or it was to be trampled upon. If it was to be trampled upon, it signified little whether more commissioners were to be taken from Holland than from each of the other provinces, or fewer, or none at all. Moreover it was pretended that a majority of the whole board was to be assigned to that province. But twelve is not a majority of twenty-four. There were three fascals or prosecuting officers, Leeuwen of Utrecht, Sylla of Gelderland, and Antony Duyck of Holland. Duyck was notoriously the deadly enemy of Barneveld, and was destined to succeed to his offices. It would have been as well to select Francis Aerssens himself.

It was necessary to appoint a commission because there was no tribunal appertaining to the States-General. The general government of the confederacy had no power to deal with an individual. It could only negotiate with the sovereign province to which the individual was responsible, and demand his punishment if proved guilty of an offence. There was no supreme court of appeal. Machinery was provided for settling

or attempting to settle disputes among the members of the confederacy, and if there was a culprit in this great process it was Holland itself. Neither the Advocate nor any one of his associates had done any act except by authority, express or implied, of that sovereign State. Supposing them unquestionably guilty of blackest crimes against the Generality, the dilemma was there which must always exist by the very nature of things in a confederacy. No sovereign can try a fellow sovereign. The subject can be tried at home by no sovereign but his own.

The accused in this case were amenable to the laws of Holland only.

It was a packed tribunal. Several of the commissioners, like Pauw and Muis for example, were personal enemies of Barneveld. Many of them were totally ignorant of law. Some of them knew not a word of any language but their mother tongue, although much of the law which they were to administer was written in Latin.

Before such a court the foremost citizen of the Netherlands, the first living statesman of Europe, was brought day by day during a period of nearly three months; coming down stairs from the mean and desolate room where he was confined to the comfortable apartment below, which had been fitted up for the commission.

There was no bill of indictment, no arraignment, no counsel. There were no witnesses and no arguments. The court-room contained, as it were, only a prejudiced and partial jury to pronounce both on law and fact without a judge to direct them, or advocates to sift testimony and contend for or against the prisoner's guilt. The process, for it could not be called a trial, consisted of a vast series of rambling and tangled interrogatories reaching over a space of forty years without apparent connection or relevancy, skipping fantastically about from one period to another, back and forth with

apparently no other intent than to puzzle the prisoner, throw him off his balance, and lead him into self-contradiction.

The spectacle was not a refreshing one. It was the attempt of a multitude of pigmies to overthrow and bind the giant.

Barneveld was served with no articles of impeachment. He asked for a list in writing of the charges against him, that he might ponder his answer. The demand was refused. He was forbidden the use of pen and ink or any writing materials. His papers and books were all taken from him.

He was allowed to consult neither with an advocate nor even with a single friend. Alone in his chamber of bondage he was to meditate on his defence. Out of his memory and brain, and from these alone, he was to supply himself with the array of historical facts stretching over a longer period than the lifetime of many of his judges, and with the proper legal and historical arguments upon those facts for the justification of his course. That memory and brain were capacious and powerful enough for the task. It was well for the judges that they had bound themselves, at the outset, by an oath never to make known what passed in the courtroom, but to bury all the proceedings in profound secrecy forever. Had it been otherwise, had that been known to the contemporary public which has only been revealed more than two centuries later, had a portion only of the calm and austere eloquence been heard in which the Advocate set forth his defence, had the frivolous and ignoble nature of the attack been comprehended, it might have moved the very stones in the streets to mutiny. Hateful as the statesman had been made by an organized system of calumny, which was continued with unabated vigour and increased venom since he had been imprisoned, there was enough of justice and of gratitude left in the hearts of Netherlanders to resent the tyranny practised against their greatest man, and

the obloquy thus brought against a nation always devoted to their liberties and laws.

That the political system of the country was miserably defective was no fault of Barneveld. He was bound by oath and duty to administer, not make the laws. A handful of petty feudal sovereignties such as had once covered the soil of Europe, a multitude of thriving cities which had wrested or purchased a mass of liberties, customs, and laws from their little tyrants, all subjected afterwards, without being blended together, to a single foreign family, had at last one by one, or two by two, shaken off that supremacy, and, resuming their ancient and as it were decapitated individualities, had bound themselves by treaty in the midst of a war to stand by each other, as if they were but one province, for purposes of common defence against the common foe.

There had been no pretence of laying down a constitution, of enacting an organic law. The day had not come for even the conception of a popular constitution. The people had not been invented. It was not provinces only, but cities, that had contracted with each other, according to the very first words of the first Article of Union. Some of these cities, like Ghent, Bruges, Antwerp, were Catholic by overwhelming majority, and had subsequently either fallen away from the confederacy or been conquered.

And as if to make assurance doubly sure, the Articles of Union not only reserved to each province all powers not absolutely essential for carrying on the war in common, but by an express article (the 13th), declared that Holland and Zealand should regulate the matter of religion according to their own discretion, while the other provinces might conform to the provisions of the "Religious Peace" which included mutual protection for Catholics and Protestants—or take such other order as seemed most conducive to the religious and secular rights of the inhabitants. It was

stipulated that no province should interfere with another in such matters, and that every individual in them all should remain free in his religion, no man being molested or examined on account of his creed. A farther declaration in regard to this famous article was made to the effect that no provinces or cities which held to the Roman Catholic religion were to be excluded from the League of Union if they were ready to conform to its conditions and comport themselves patriotically. Language could not be devised to declare more plainly than was done by this treaty that the central government of the League had neither wish nor right to concern itself with the religious affairs of the separate cities or provinces. If it permitted both Papists and Protestants to associate themselves against the common foe, it could hardly have been imagined, when the Articles were drawn, that it would have claimed the exclusive right to define the minutest points in a single Protestant creed.

And if the exclusively secular parts of the polity prevailing in the country were clumsy, irregular, and even monstrous, and if its defects had been flagrantly demonstrated by recent events, a more reasonable method of reforming the laws might have been found than the imprisonment of a man who had faithfully administered them forty years long.

A great commonwealth had grown out of a petty feudal organism, like an oak from an acorn in a crevice, gnarled and distorted, though wide-spreading and vigorous. It seemed perilous to deal radically with such a polity, and an almost timid conservatism on the part of its guardians in such an age of tempests might be pardonable.

Moreover, as before remarked, the apparent imbecility resulting from confederacy and municipalism combined was for a season remedied by the actual preponderance of Holland. Two-thirds of the total wealth and strength of the seven republics being concentrated in one province, the

desired union seemed almost gained by the practical solution of all in that single republic. But this was one great cause of the general disaster.

It would be a thankless and tedious task to wander through the wilderness of interrogatories and answers extending over three months of time, which stood in the place of a trial. The defence of Barneveld was his own history, and that I have attempted to give in the preceding pages. A great part of the accusation was deduced from his private and official correspondence, and it is for this reason that I have laid such copious extracts from it before the reader. No man except the judges and the States-General had access to those letters, and it was easy therefore, if needful, to give them a false colouring. It is only very recently that they have been seen at all, and they have never been published from that day to this.

Out of the confused mass of documents appertaining to the trial, a few generalizations can be made which show the nature of the attack upon him. He was accused of having permitted Arminius to infuse new opinions into the University of Leyden, and of having subsequently defended the appointment of Vorstius to the same place. He had opposed the National Synod. He had made drafts of letters for the King of Great Britain to sign, recommending mutual toleration on the five disputed points regarding predestination. He was the author of the famous Sharp Resolution. He had recommended the enlistment by the provinces and towns of Waartgelders or mercenaries. He had maintained that those mercenaries as well as the regular troops were bound in time of peace to be obedient and faithful, not only to the Generality and the stadholders, but to the magistrates of the cities and provinces where they were employed, and to the states by whom they were paid. He had sent to Leyden, warning the authorities of the approach of the Prince. He had encouraged all the proceedings at Utrecht, writing a letter to the secretary of that province advising a watch to be kept at the city gates as well as in the river, and ordering his letter when read to

be burned. He had received presents from foreign potentates. He had attempted to damage the character of his Excellency the Prince by declaring on various occasions that he aspired to the sovereignty of the country. He had held a ciphered correspondence on the subject with foreign ministers of the Republic. He had given great offence to the King of Great Britain by soliciting from him other letters in the sense of those which his Majesty had written in 1613, advising moderation and mutual toleration. He had not brought to condign punishment the author of 'The Balance', a pamphlet in which an oration of the English ambassador had been criticised, and aspersions made on the Order of the Garter. He had opposed the formation of the West India Company. He had said many years before to Nicolas van Berk that the Provinces had better return to the dominion of Spain. And in general, all his proceedings had tended to put the Provinces into a "blood bath."

There was however no accusation that he had received bribes from the enemy or held traitorous communication with him, or that he had committed any act of high-treason.

His private letters to Caron and to the ambassadors in Paris, with which the reader has been made familiar, had thus been ransacked to find treasonable matter, but the result was meagre in spite of the minute and microscopic analysis instituted to detect traces of poison in them.

But the most subtle and far-reaching research into past transactions was due to the Greffier Cornelis Aerssens, father of the Ambassador Francis, and to a certain Nicolas van Berk, Burgomaster of Utrecht.

The process of tale-bearing, hearsay evidence, gossip, and invention went back a dozen years, even to the preliminary and secret conferences in regard to the Treaty of Truce.

Readers familiar with the history of those memorable negotiations are aware that Cornelis van Aerssens had compromised himself by accepting a valuable diamond and a bill of exchange drawn by Marquis Spinola on a merchant in Amsterdam, Henry Beekman by name, for 80,000 ducats. These were handed by Father Neyen, the secret agent of the Spanish government, to the Greffier as a prospective reward for his services in furthering the Truce. He did not reject them, but he informed Prince Maurice and the Advocate of the transaction. Both diamond and bill of exchange were subsequently deposited in the hands of the treasurer of the States-General, Joris de Bie, the Assembly being made officially acquainted with the whole course of the affair.

It is passing strange that this somewhat tortuous business, which certainly cast a shade upon the fair fame of the elder Aerssens, and required him to publish as good a defence as he could against the consequent scandal, should have furnished a weapon wherewith to strike at the Advocate of Holland some dozen years later.

But so it was. Krauwels, a relative of Aerssens, through whom Father Neyen had first obtained access to the Greffier, had stated, so it seemed, that the monk had, in addition to the bill, handed to him another draft of Spinola's for 100,000 ducats, to be given to a person of more consideration than Aerssens. Krauwels did not know who the person was, nor whether he took the money. He expressed his surprise however that leading persons in the government "even old and authentic beggars"—should allow themselves to be so seduced as to accept presents from the enemy. He mentioned two such persons, namely, a burgomaster at Delft and a burgomaster at Haarlem. Aerssens now deposed that he had informed the Advocate of this story, who had said, "Be quiet about it, I will have it investigated," and some days afterwards on being questioned stated that he had made enquiry and found there was something in it.

So the fact that Cornelis Aerssens had taken bribes, and that two burgomasters were strongly suspected by Aerssens of having taken bribes, seems to have been considered as evidence that Barneveld had taken a bribe. It is true that Aerssens by advice of Maurice and Barneveld had made a clean breast of it to the States-General and had given them over the presents. But the States-General could neither wear the diamond nor cash the bill of exchange, and it would have been better for the Greffier not to contaminate his fingers with them, but to leave the gifts in the monk's palm. His revenge against the Advocate for helping him out of his dilemma, and for subsequently advancing his son Francis in a brilliant diplomatic career, seems to have been—when the clouds were thickening and every man's hand was against the fallen statesman—to insinuate that he was the anonymous personage who had accepted the apocryphal draft for 100,000 ducats.

The case is a pregnant example of the proceedings employed to destroy the Advocate.

The testimony of Nicolas van Berk was at any rate more direct.

On the 21st December 1618 the burgomaster testified that the Advocate had once declared to him that the differences in regard to Divine Worship were not so great but that they might be easily composed; asking him at the same time "whether it would not be better that we should submit ourselves again to the King of Spain." Barneveld had also referred, so said van Berk, to the conduct of the Spanish king towards those who had helped him to the kingdom of Portugal. The Burgomaster was unable however to specify the date, year, or month in which the Advocate had held this language. He remembered only that the conversation occurred when Barneveld was living on the Spui at the Hague, and that having been let into the house through

the hall on the side of the vestibule, he had been conducted by the Advocate down a small staircase into the office.

The only fact proved by the details seems to be that the story had lodged in the tenacious memory of the Burgomaster for eight years, as Barneveld had removed from the Spui to Arenberg House in the Voorhout in the year 1611.

No other offers from the King of Spain or the Archdukes had ever been made to him, said van Berk, than those indicated in this deposition against the Advocate as coming from that statesman. Nor had Barneveld ever spoken to him upon such subjects except on that one occasion.

It is not necessary and would be wearisome to follow the unfortunate statesman through the long line of defence which he was obliged to make, in fragmentary and irregular form, against these discursive and confused assaults upon him. A continuous argument might be built up with the isolated parts which should be altogether impregnable. It is superfluous.

Always instructive to his judges as he swept at will through the record of nearly half a century of momentous European history, in which he was himself a conspicuous figure, or expounding the ancient laws and customs of the country with a wealth and accuracy of illustration which testified to the strength of his memory, he seemed rather like a sage expounding law and history to a class of pupils than a criminal defending himself before a bench of commissioners. Moved occasionally from his austere simplicity, the majestic old man rose to a strain of indignant eloquence which might have shaken the hall of a vast assembly and found echo in the hearts of a thousand hearers as he denounced their petty insults or ignoble insinuations; glaring like a caged lion at his tormentors, who had often shrunk before him when free, and now attempted to drown his voice by contradictions, interruptions, threats, and unmeaning howls.

He protested, from the outset and throughout the proceedings, against the jurisdiction of the tribunal. The Treaty of Union on which the Assembly and States-General were founded gave that assembly no power over him. They could take no legal cognizance of his person or his acts. He had been deprived of writing materials, or he would have already drawn up his solemn protest and argument against the existence of the commission. He demanded that they should be provided for him, together with a clerk to engross his defence. It is needless to say that the demand was refused.

It was notorious to all men, he said, that on the day when violent hands were laid upon him he was not bound to the States-General by oath, allegiance, or commission. He was a well-known inhabitant of the Hague, a householder there, a vassal of the Commonwealth of Holland, enfeoffed of many notable estates in that country, serving many honourable offices by commission from its government. By birth, promotion, and conferred dignities he was subject to the supreme authority of Holland, which for forty years had been a free state possessed of all the attributes of sovereignty, political, religious, judicial, and recognizing no superior save God Almighty alone.

He was amenable to no tribunal save that of their Mightinesses the States of Holland and their ordinary judges. Not only those States but the Prince of Orange as their governor and vassal, the nobles of Holland, the colleges of justice, the regents of cities, and all other vassals, magistrates, and officers were by their respective oaths bound to maintain and protect him in these his rights.

After fortifying this position by legal argument and by an array of historical facts within his own experience, and alluding to the repeated instances in which, sorely against his will, he had been solicited and almost compelled to remain in offices of which he was weary, he referred with

dignity to the record of his past life. From the youthful days when he had served as a volunteer at his own expense in the perilous sieges of Haarlem and Leyden down to the time of his arrest, through an unbroken course of honourable and most arduous political services, embassies, and great negotiations, he had ever maintained the laws and liberties of the Fatherland and his own honour unstained.

That he should now in his seventy-second year be dragged, in violation of every privilege and statute of the country, by extraordinary means, before unknown judges, was a grave matter not for himself alone but for their Mightinesses the States of Holland and for the other provinces. The precious right 'de non evocando' had ever been dear to all the provinces, cities, and inhabitants of the Netherlands. It was the most vital privilege in their possession as well in civil as criminal, in secular as in ecclesiastical affairs.

When the King of Spain in 1567, and afterwards, set up an extraordinary tribunal and a course of extraordinary trials, it was an undeniable fact, he said, that on the solemn complaint of the States all princes, nobles, and citizens not only in the Netherlands but in foreign countries, and all foreign kings and sovereigns, held those outrages to be the foremost and fundamental reason for taking up arms against that king, and declaring him to have forfeited his right of sovereignty.

Yet that monarch was unquestionably the born and accepted sovereign of each one of the provinces, while the General Assembly was but a gathering of confederates and allies, in no sense sovereign. It was an unimaginable thing, he said, that the States of each province should allow their whole authority and right of sovereignty to be transferred to a board of commissioners like this before which he stood. If, for example, a general union of France, England, and the States of the United Netherlands should

be formed (and the very words of the Act of Union contemplated such possibility), what greater absurdity could there be than to suppose that a college of administration created for the specific purposes of such union would be competent to perform acts of sovereignty within each of those countries in matters of justice, polity, and religion?

It was known to mankind, he said, that when negotiations were entered into for bestowing the sovereignty of the Provinces on France and on England, special and full powers were required from, and furnished by, the States of each individual province.

Had the sovereignty been in the assembly of the States-General, they might have transferred it of their own motion or kept it for themselves.

Even in the ordinary course of affairs the commissioners from each province to the General Assembly always required a special power from their constituents before deciding any matter of great importance.

In regard to the defence of the respective provinces and cities, he had never heard it doubted, he said, that the states or the magistrates of cities had full right to provide for it by arming a portion of their own inhabitants or by enlisting paid troops. The sovereign counts of Holland and bishops of Utrecht certainly possessed and exercised that right for many hundred years, and by necessary tradition it passed to the states succeeding to their ancient sovereignty. He then gave from the stores of his memory innumerable instances in which soldiers had been enlisted by provinces and cities all over the Netherlands from the time of the abjuration of Spain down to that moment. Through the whole period of independence in the time of Anjou, Matthias, Leicester, as well as under the actual government, it had been the invariable custom thus to provide both by land and sea and on the rivers against robbers, rebels, pirates, mischief-makers, assailing thieves, domestic or foreign. It had been done by the immortal William the

Silent on many memorable occasions, and in fact the custom was so notorious that soldiers so enlisted were known by different and peculiar nicknames in the different provinces and towns.

That the central government had no right to meddle with religious matters was almost too self-evident an axiom to prove. Indeed the chief difficulty under which the Advocate laboured throughout this whole process was the monstrous assumption by his judges of a political and judicial system which never had any existence even in imagination. The profound secrecy which enwrapped the proceedings from that day almost to our own and an ignorant acquiescence of a considerable portion of the public in accomplished facts offer the only explanation of a mystery which must ever excite our wonder. If there were any impeachment at all, it was an impeachment of the form of government itself. If language could mean anything whatever, a mere perusal of the Articles of Union proved that the prisoner had never violated that fundamental pact. How could the general government prescribe an especial formulary for the Reformed Church, and declare opposition to its decrees treasonable, when it did not prohibit, but absolutely admitted and invited, provinces and cities exclusively Catholic to enter the Union, guaranteeing to them entire liberty of religion?

Barneveld recalled the fact that when the stadholdership of Utrecht thirty years before had been conferred on Prince Maurice the States of that province had solemnly reserved for themselves the disposition over religious matters in conformity with the Union, and that Maurice had sworn to support that resolution.

Five years later the Prince had himself assured a deputation from Brabant that the States of each province were supreme in religious matters, no interference the one with the other being justifiable or possible. In 1602 the States General in letters addressed to the States of the obedient provinces

under dominion of the Archdukes had invited them to take up arms to help drive the Spaniards from the Provinces and to join the Confederacy, assuring them that they should regulate the matter of religion at their good pleasure, and that no one else should be allowed to interfere therewith.

The Advocate then went into an historical and critical disquisition, into which we certainly have no need to follow him, rapidly examining the whole subject of predestination and conditional and unconditional damnation from the days of St. Augustine downward, showing a thorough familiarity with a subject of theology which then made up so much of the daily business of life, political and private, and lay at the bottom of the terrible convulsion then existing in the Netherlands. We turn from it with a shudder, reminding the reader only how persistently the statesman then on his trial had advocated conciliation, moderation, and kindness between brethren of the Reformed Church who were not able to think alike on one of the subtlest and most mysterious problems that casuistry has ever propounded.

For fifty years, he said, he had been an enemy of all compulsion of the human conscience. He had always opposed rigorous ecclesiastical decrees. He had done his best to further, and did not deny having inspired, the advice given in the famous letters from the King of Great Britain to the States in 1613, that there should be mutual toleration and abstinence from discussion of disputed doctrines, neither of them essential to salvation. He thought that neither Calvin nor Beza would have opposed freedom of opinion on those points. For himself he believed that the salvation of mankind would be through God's unmerited grace and the redemption of sins through the Saviour, and that the man who so held and persevered to the end was predestined to eternal happiness, and that his children dying before the age of reason were destined not to Hell but to Heaven. He had thought fifty years long that the passion and sacrifice of Christ the Saviour were more

potent to salvation than God's wrath and the sin of Adam and Eve to damnation. He had done his best practically to avert personal bickerings among the clergy. He had been, so far as lay in his power, as friendly to Remonstrants as to Contra-Remonstrants, to Polyander and Festus Hommius as to Uytenbogaert and Episcopius. He had almost finished a negotiation with Councillor Kromhout for the peaceable delivery of the Cloister Church on the Thursday preceding the Sunday on which it had been forcibly seized by the Contra-Remonstrants.

When asked by one of his judges how he presumed to hope for toleration between two parties, each of which abhorred the other's opinions, and likened each other to Turks and devil-worshippers, he replied that he had always detested and rebuked those mutual revilings by every means in his power, and would have wished to put down such calumniators of either persuasion by the civil authority, but the iniquity of the times and the exasperation of men's humours had prevented him.

Being perpetually goaded by one judge after another as to his disrespectful conduct towards the King of Great Britain, and asked why his Majesty had not as good right to give the advice of 1617 as the recommendation of tolerance in 1613, he scrupulously abstained, as he had done in all his letters, from saying a disrespectful word as to the glaring inconsistency between the two communications, or to the hostility manifested towards himself personally by the British ambassador. He had always expressed the hope, he said, that the King would adhere to his original position, but did not dispute his right to change his mind, nor the good faith which had inspired his later letters. It had been his object, if possible, to reconcile the two different systems recommended by his Majesty into one harmonious whole.

His whole aim had been to preserve the public peace as it was the duty of every magistrate, especially in times of such excitement, to do. He could never comprehend why the toleration of the Five Points should be a danger to the Reformed religion. Rather, he thought, it would strengthen the Church and attract many Lutherans, Baptists, Catholics, and other good patriots into its pale. He had always opposed the compulsory acceptance by the people of the special opinions of scribes and doctors. He did not consider, he said, the difference in doctrine on this disputed point between the Contra-Remonstrants and Remonstrants as one-tenth the value of the civil authority and its right to make laws and ordinances regulating ecclesiastical affairs.

He believed the great bulwark of the independence of the country to be the Reformed Church, and his efforts had ever been to strengthen that bulwark by preventing the unnecessary schism which might prove its ruin. Many questions of property, too, were involved in the question—the church buildings, lands and pastures belonging to the Counts of Holland and their successors—the States having always exercised the right of church patronage—'jus patronatus'—a privilege which, as well as inherited or purchased advowsons, had been of late flagrantly interfered with.

He was asked if he had not said that it had never been the intention of the States-General to carry on the war for this or that religion.

He replied that he had told certain clergymen expressing to him their opinion that the war had been waged solely for the furtherance of their especial shade of belief, that in his view the war had been undertaken for the conservation of the liberties and laws of the land, and of its good people. Of that freedom the first and foremost point was the true Christian religion and liberty of conscience and opinion. There must be religion in the Republic, he had said, but that the war was carried on to sustain the opinion

of one doctor of divinity or another on—differential points was something he had never heard of and could never believe. The good citizens of the country had as much right to hold by Melancthon as by Calvin or Beza. He knew that the first proclamations in regard to the war declared it to be undertaken for freedom of conscience, and so to his, own knowledge it had been always carried on.

He was asked if he had not promised during the Truce negotiations so to direct matters that the Catholics with time might obtain public exercise of their religion.

He replied that this was a notorious falsehood and calumny, adding that it ill accorded with the proclamation against the Jesuits drawn up by himself some years after the Truce. He furthermore stated that it was chiefly by his direction that the discourse of President Jeannin—urging on part of the French king that liberty of worship might be granted to the Papists—was kept secret, copies of it not having been furnished even to the commissioners of the Provinces.

His indignant denial of this charge, especially taken in connection with his repeated assertions during the trial, that among the most patriotic Netherlanders during and since the war were many adherents of the ancient church, seems marvellously in contradiction with his frequent and most earnest pleas for liberty of conscience. But it did not appear contradictory even to his judges nor to any contemporary. His position had always been that the civil authority of each province was supreme in all matters political or ecclesiastical. The States-General, all the provinces uniting in the vote, had invited the Catholic provinces on more than one occasion to join the Union, promising that there should be no interference on the part of any states or individuals with the internal affairs religious or otherwise of the provinces accepting the invitation. But it would have been a gross

contradiction of his own principle if he had promised so to direct matters that the Catholics should have public right of worship in Holland where he knew that the civil authority was sure to refuse it, or in any of the other six provinces in whose internal affairs he had no voice whatever. He was opposed to all tyranny over conscience, he would have done his utmost to prevent inquisition into opinion, violation of domicile, interference with private worship, compulsory attendance in Protestant churches of those professing the Roman creed. This was not attempted. No Catholic was persecuted on account of his religion. Compared with the practice in other countries this was a great step in advance. Religious tolerance lay on the road to religious equality, a condition which had hardly been imagined then and scarcely exists in Europe even to this day. But among the men in history whose life and death contributed to the advancement of that blessing, it would be vain to deny that Barneveld occupies a foremost place.

Moreover, it should be remembered that religious equality then would have been a most hazardous experiment. So long as Church and State were blended, it was absolutely essential at that epoch for the preservation of Protestantism to assign the predominance to the State. Should the Catholics have obtained religious equality, the probable result would before long have been religious inequality, supremacy of the Catholics in the Church, and supremacy of the Church over the State. The fruits of the forty years' war would have become dust and ashes. It would be mere weak sentimentalism to doubt—after the bloody history which had just closed and the awful tragedy, then reopening—that every spark of religious liberty would have soon been trodden out in the Netherlands. The general onslaught of the League with Ferdinand, Maximilian of Bavaria, and Philip of Spain at its head against the distracted, irresolute, and wavering line of Protestantism across the whole of Europe was just preparing. Rather a wilderness to reign over than a single heretic, was the war-cry of the Emperor. The King of Spain, as we have just been reading in his most secret, ciphered despatches

to the Archduke at Brussels, was nursing sanguine hopes and weaving elaborate schemes for recovering his dominion over the United Netherlands, and proposing to send an army of Jesuits thither to break the way to the reconquest. To play into his hands then, by granting public right of worship to the Papists, would have been in Barneveld's opinion like giving up Julich and other citadels in the debatable land to Spain just as the great war between Catholicism and Protestantism was breaking out. There had been enough of burning and burying alive in the Netherlands during the century which had closed. It was not desirable to give a chance for their renewal now.

In regard to the Synod, Barneveld justified his course by a simple reference to the 13th Article of the Union. Words could not more plainly prohibit the interference by the States-General with the religious affairs of any one of the Provinces than had been done by that celebrated clause. In 1583 there had been an attempt made to amend that article by insertion of a pledge to maintain the Evangelical, Reformed, religion solely, but it was never carried out. He disdained to argue so self-evident a truth, that a confederacy which had admitted and constantly invited Catholic states to membership, under solemn pledge of noninterference with their religious affairs, had no right to lay down formulas for the Reformed Church throughout all the Netherlands. The oath of stadholder and magistrates in Holland to maintain the Reformed religion was framed before this unhappy controversy on predestination had begun, and it was mere arrogant assumption on the part of the Contra-Remonstrants to claim a monopoly of that religion, and to exclude the Remonstrants from its folds.

He had steadily done his utmost to assuage those dissensions while maintaining the laws which he was sworn to support. He had advocated a provincial synod to be amicably assisted by divines from neighbouring countries. He had opposed a National Synod unless unanimously voted by

the Seven Provinces, because it would have been an open violation of the fundamental law of the confederacy, of its whole spirit, and of liberty of conscience. He admitted that he had himself drawn up a protest on the part of three provinces (Holland, Utrecht, and Overijssel) against the decree for the National Synod as a breach of the Union, declaring it to be therefore null and void and binding upon no man. He had dictated the protest as oldest member present, while Grotius as the youngest had acted as scribe. He would have supported the Synod if legally voted, but would have preferred the convocation, under the authority of all the provinces, of a general, not a national, synod, in which, besides clergy and laymen from the Netherlands, deputations from all Protestant states and churches should take part; a kind of Protestant oecumenical council.

As to the enlistment, by the States of a province, of soldiers to keep the peace and suppress tumults in its cities during times of political and religious excitement, it was the most ordinary of occurrences. In his experience of more than forty years he had never heard the right even questioned. It was pure ignorance of law and history to find it a novelty.

To hire temporarily a sufficient number of professional soldiers, he considered a more wholesome means of keeping the peace than to enlist one portion of the citizens of a town against another portion, when party and religious spirit was running high. His experience had taught him that the mutual hatred of the inhabitants, thus inflamed, became more lasting and mischievous than the resentment caused through suppression of disorder by an armed and paid police of strangers.

It was not only the right but the most solemn duty of the civil authority to preserve the tranquillity, property, and lives of citizens committed to their care. "I have said these fifty years," said Barneveld, "that it is better to be governed by magistrates than mobs. I have always maintained and still

maintain that the most disastrous, shameful, and ruinous condition into which this land can fall is that in which the magistrates are overcome by the rabble of the towns and receive laws from them. Nothing but perdition can follow from that."

There had been good reason to believe that the French garrisons as well as some of the train bands could not be thoroughly relied upon in emergencies like those constantly breaking out, and there had been advices of invasion by sympathizers from neighbouring countries. In many great cities the civil authority had been trampled upon and mob rule had prevailed. Certainly the recent example in the great commercial capital of the country—where the house of a foremost citizen had been besieged, stormed, and sacked, and a virtuous matron of the higher class hunted like a wild beast through the streets by a rabble grossly ignorant of the very nature of the religious quibble which had driven them mad, pelted with stones, branded with vilest names, and only saved by accident from assassination, while a church-going multitude looked calmly on—with constantly recurring instances in other important cities were sufficient reasons for the authorities to be watchful.

He denied that he had initiated the proceedings at Utrecht in conversation with Ledenberg or any one else, but he had not refused, he said, his approval of the perfectly legal measures adopted for keeping the peace there when submitted to him. He was himself a born citizen of that province, and therefore especially interested in its welfare, and there was an old and intimate friendship between Utrecht and Holland. It would have been painful to him to see that splendid city in the control of an ignorant mob, making use of religious problems, which they did not comprehend, to plunder the property and take the lives of peaceful citizens more comfortably housed than themselves.

He had neither suggested nor controlled the proceedings at Utrecht. On the contrary, at an interview with the Prince and Count William on the 13th July, and in the presence of nearly thirty members of the general assembly, he had submitted a plan for cashiering the enlisted soldiery and substituting for them other troops, native-born, who should be sworn in the usual form to obey the laws of the Union. The deputation from Holland to Utrecht, according to his personal knowledge, had received no instructions personal or oral to authorize active steps by the troops of the Holland quota, but to abstain from them and to request the Prince that they should not be used against the will and commands of the States of Utrecht, whom they were bound by oath to obey so long as they were in garrison there.

No man knew better than he whether the military oath which was called new-fangled were a novelty or not, for he had himself, he said, drawn it up thirty years before at command of the States-General by whom it was then ordained. From that day to this he had never heard a pretence that it justified anything not expressly sanctioned by the Articles of Union, and neither the States of Holland nor those of Utrecht had made any change in the oath. The States of Utrecht were sovereign within their own territory, and in the time of peace neither the Prince of Orange without their order nor the States-General had the right to command the troops in their territory. The governor of a province was sworn to obey the laws of the province and conform to the Articles of the General Union.

He was asked why he wrote the warning letter to Ledenberg, and why he was so anxious that the letter should be burned; as if that were a deadly offence.

He said that he could not comprehend why it should be imputed to him as a crime that he wished in such turbulent times to warn so important a city as Utrecht, the capital of his native province, against tumults, disorders, and

sudden assaults such as had often happened to her in times past. As for the postscript requesting that the letter might be put in the fire, he said that not being a member of, the government of that province he was simply unwilling to leave a record that "he had been too curious in aliens republics, although that could hardly be considered a grave offence."

In regard to the charge that he had accused Prince Maurice of aspiring to the sovereignty of the country, he had much to say. He had never brought such accusation in public or private. He had reason to believe however—he had indeed convincing proofs—that many people, especially those belonging to the Contra-Remonstrant party, cherished such schemes. He had never sought to cast suspicion on the Prince himself on account of those schemes. On the contrary, he had not even formally opposed them. What he wished had always been that such projects should be discussed formally, legally, and above board. After the lamentable murder of the late Prince he had himself recommended to the authorities of some of the cities that the transaction for bestowing the sovereignty of Holland upon William, interrupted by his death, "should be completed in favour of Prince Maurice in despite of the Spaniard." Recently he had requested Grotius to look up the documents deposited in Rotterdam belonging to this affair, in order that they might be consulted.

He was asked whether according to Buzenval, the former French ambassador, Prince Maurice had not declared he would rather fling himself from the top of the Hague tower than accept the sovereignty. Barneveld replied that the Prince according to the same authority had added "under the conditions which had been imposed upon his father;" a clause which considerably modified the self-denying statement. It was desirable therefore to search the acts for the limitations annexed to the sovereignty.

Three years long there had been indications from various sources that a party wished to change the form of government. He had not heard nor ever intimated that the Prince suggested such intrigues. In anonymous pamphlets and common street and tavern conversations the Contra- Remonstrants were described by those of their own persuasion as "Prince's Beggars" and the like. He had received from foreign countries information worthy of attention, that it was the design of the Contra- Remonstrants to raise the Prince to the sovereignty. He had therefore in 1616 brought the matter before the nobles and cities in a communication setting forth to the best of his recollection that under these religious disputes something else was intended. He had desired ripe conclusions on the matter, such as should most conduce to the service of the country. This had been in good faith both to the Prince and the Provinces, in order that, should a change in the government be thought desirable, proper and peaceful means might be employed to bring it about. He had never had any other intention than to sound the inclinations of those with whom he spoke, and he had many times since that period, by word of mouth and in writing, so lately as the month of April last assured the Prince that he had ever been his sincere and faithful servant and meant to remain so to the end of his life, desiring therefore that he would explain to him his wishes and intentions.

Subsequently he had publicly proposed in full Assembly of Holland that the States should ripely deliberate and roundly declare if they were discontented with the form of government, and if so, what change they would desire. He had assured their Mightinesses that they might rely upon him to assist in carrying out their intentions whatever they might be. He had inferred however from the Prince's intimations, when he had broached the subject to him in 1617, that he was not inclined towards these supposed projects, and had heard that opinion distinctly expressed from the mouth of Count William.

That the Contra-Remonstrants secretly entertained these schemes, he had been advised from many quarters, at home and abroad. In the year 1618 he had received information to that effect from France. Certain confidential counsellors of the Prince had been with him recently to confer on the subject. He had told them that, if his Excellency chose to speak to him in regard to it, would listen to his reasoning about it, both as regarded the interests of the country and the Prince himself, and then should desire him to propose and advocate it before the Assembly, he would do so with earnestness, zeal, and affection. He had desired however that, in case the attempt failed, the Prince would allow him to be relieved from service and to leave the country. What he wished from the bottom of his heart was that his Excellency would plainly discover to him the exact nature of his sentiments in regard to the business.

He fully admitted receiving a secret letter from Ambassador Langerac, apprising him that a man of quality in France had information of the intention of the Contra-Remonstrants throughout the Provinces, should they come into power, to raise Prince Maurice to the sovereignty. He had communicated on the subject with Grotius and other deputies in order that, if this should prove to be the general inclination, the affair might be handled according to law, without confusion or disorder. This, he said, would be serving both the country and the Prince most judiciously.

He was asked why he had not communicated directly with Maurice. He replied that he had already seen how unwillingly the Prince heard him allude to the subject, and that moreover there was another clause in the letter of different meaning, and in his view worthy of grave consideration by the States.

No question was asked him as to this clause, but we have seen that it referred to the communication by du Agean to Langerac of a scheme for

bestowing the sovereignty of the Provinces on the King of France. The reader will also recollect that Barneveld had advised the Ambassador to communicate the whole intelligence to the Prince himself.

Barneveld proceeded to inform the judges that he had never said a word to cast suspicion upon the Prince, but had been actuated solely by the desire to find out the inclination of the States. The communications which he had made on the subject were neither for discrediting the Prince nor for counteracting the schemes for his advancement. On the contrary, he had conferred with deputies from great cities like Dordrecht, Enkhuyzen, and Amsterdam, most devoted to the Contra-Remonstrant party, and had told them that, if they chose to propose the subject themselves, he would conduct himself to the best of his abilities in accordance with the wishes of the Prince.

It would seem almost impossible for a statesman placed in Barneveld's position to bear himself with more perfect loyalty both to the country and to the Stadholder. His duty was to maintain the constitution and laws so long as they remained unchanged. Should it appear that the States, which legally represented the country, found the constitution defective, he was ready to aid in its amendment by fair public and legal methods.

If Maurice wished to propose himself openly as a candidate for the sovereignty, which had a generation before been conferred upon his father, Barneveld would not only acquiesce in the scheme, but propose it.

Should it fail, he claimed the right to lay down all his offices and go into exile.

He had never said that the Prince was intriguing for, or even desired, the sovereignty. That the project existed among the party most opposed to himself, he had sufficient proof. To the leaders of that party therefore he

suggested that the subject should be publicly discussed, guaranteeing freedom of debate and his loyal support so far as lay within his power.

This was his answer to the accusation that he had meanly, secretly, and falsely circulated statements that the Prince was aspiring to the sovereignty.

[Great pains were taken, in the course of the interrogatories, to elicit proof that the Advocate had concealed important diplomatic information from the Prince. He was asked why, in his secret instructions to Ambassador Langerac, he ordered him by an express article to be very cautious about making communications to the Prince. Searching questions were put in regard to these secret instructions, which I have read in the Archives, and a copy of which now lies before me. They are in the form of questions, some of them almost puerile ones, addressed to Barneveld by the Ambassador then just departing on his mission to France in 1614, with the answers written in the margin by the Advocate. The following is all that has reference to the Prince: "Of what matters may I ordinarily write to his Excellency?" Answer—"Of all great and important matters." It was difficult to find much that was treasonable in that.]

Among the heterogeneous articles of accusation he was asked why he had given no attention to those who had so, frequently proposed the formation of the West India Company.

He replied that it had from old time been the opinion of the States of Holland, and always his own, that special and private licenses for traffic, navigation, and foreign commerce, were prejudicial to the welfare of the land. He had always been most earnestly opposed to them, detesting monopolies which interfered with that free trade and navigation which should be common to all mankind. He had taken great pains however in the

years 1596 and 1597 to study the nature of the navigation and trade to the East Indies in regard to the nations to be dealt with in those regions, the nature of the wares bought and sold there, the opposition to be encountered from the Spaniards and Portuguese against the commerce of the Netherlands, and the necessity of equipping vessels both for traffic and defence, and had come to the conclusion that these matters could best be directed by a general company. He explained in detail the manner in which he had procured the blending of all the isolated chambers into one great East India Corporation, the enormous pains which it had cost him to bring it about, and the great commercial and national success which had been the result. The Admiral of Aragon, when a prisoner after the battle of Nieuwpoort, had told him, he said, that the union of these petty corporations into one great whole had been as disastrous a blow to the kingdoms of Spain and Portugal as the Union of the Provinces at Utrecht had been. In regard to the West India Company, its sole object, so far as he could comprehend it, had been to equip armed vessels, not for trade but to capture and plunder Spanish merchantmen and silver fleets in the West Indies and South America. This was an advantageous war measure which he had favoured while the war lasted. It was in no sense a commercial scheme however, and when the Truce had been made—the company not having come into existence—he failed to comprehend how its formation could be profitable for the Netherlands. On the contrary it would expressly invite or irritate the Spaniards into a resumption of the war, an object which in his humble opinion was not at all desirable.

Certainly these ideas were not especially reprehensible, but had they been as shallow and despicable as they seem to us enlightened, it is passing strange that they should have furnished matter for a criminal prosecution.

It was doubtless a disappointment for the promoters of the company, the chief of whom was a bankrupt, to fail in obtaining their charter, but it was

scarcely high-treason to oppose it. There is no doubt however that the disapprobation with which Barneveld regarded the West India Company, the seat of which was at Amsterdam, was a leading cause of the deadly hostility entertained for him by the great commercial metropolis.

It was bad enough for the Advocate to oppose unconditional predestination and the damnation of infants, but to frustrate a magnificent system of privateering on the Spaniards in time of truce was an unpardonable crime.

The patience with which the venerable statesman submitted to the taunts, ignorant and insolent cross-questionings, and noisy interruptions of his judges, was not less remarkable than the tenacity of memory which enabled him thus day after day, alone, unaided by books, manuscripts, or friendly counsel, to reconstruct the record of forty years, and to expound the laws of the land by an array of authorities, instances, and illustrations in a manner that would be deemed masterly by one who had all the resources of libraries, documents, witnesses, and secretaries at command.

Only when insidious questions were put tending to impute to him corruption, venality, and treacherous correspondence with the enemy—for they never once dared formally to accuse him of treason—did that almost superhuman patience desert him.

He was questioned as to certain payments made by him to a certain van der Vecken in Spanish coin. He replied briefly at first that his money transactions with that man of business extended over a period of twenty or thirty years, and amounted to many hundred thousands of florins, growing out of purchases and sales of lands, agricultural enterprises on his estates, moneys derived from his professional or official business and the like. It was impossible for him to remember the details of every especial money payment that might have occurred between them.

Then suddenly breaking forth into a storm of indignation; he could mark from these questions, he said, that his enemies, not satisfied with having wounded his heart with their falsehoods, vile forgeries, and honour-robbing libels, were determined to break it. This he prayed that God Almighty might avert and righteously judge between him and them.

It was plain that among other things they were alluding to the stale and senseless story of the sledge filled with baskets of coin sent by the Spanish envoys on their departure from the Hague, on conclusion of the Truce, to defray expenses incurred by them for board and lodging of servants, forage of horses, and the like-which had accidentally stopped at Barneveld's door and was forthwith sent on to John Spronssen, superintendent of such affairs. Passing over this wanton bit of calumny with disgust, he solemnly asserted that he had never at any period of his life received one penny nor the value of one penny from the King of Spain, the Archdukes, Spinola, or any other person connected with the enemy, saving only the presents publicly and mutually conferred according to invariable custom by the high contracting parties, upon the respective negotiators at conclusion of the Treaty of Truce. Even these gifts Barneveld had moved his colleagues not to accept, but proposed that they should all be paid into the public treasury. He had been overruled, he said, but that any dispassionate man of tolerable intelligence could imagine him, whose whole life had been a perpetual offence to Spain, to be in suspicious relations with that power seemed to him impossible. The most intense party spirit, yea, envy itself, must confess that he had been among the foremost to take up arms for his country's liberties, and had through life never faltered in their defence. And once more in that mean chamber, and before a row of personal enemies calling themselves judges, he burst into an eloquent and most justifiable sketch of the career of one whom there was none else to justify and so many to assail.

From his youth, he said, he had made himself by his honourable and patriotic deeds hopelessly irreconcilable with the Spaniards. He was one of the advocates practising in the Supreme Court of Holland, who in the very teeth of the Duke of Alva had proclaimed him a tyrant and had sworn obedience to the Prince of Orange as the lawful governor of the land. He was one of those who in the same year had promoted and attended private gatherings for the advancement of the Reformed religion. He had helped to levy, and had contributed to, funds for the national defence in the early days of the revolt. These were things which led directly to the Council of Blood and the gibbet. He had borne arms himself on various bloody fields and had been perpetually a deputy to the rebel camps. He had been the original mover of the Treaty of Union which was concluded between the Provinces at Utrecht. He had been the first to propose and to draw up the declaration of Netherland independence and the abjuration of the King of Spain. He had been one of those who had drawn and passed the Act establishing the late Prince of Orange as stadholder. Of the sixty signers of these memorable declarations none were now living save himself and two others. When the Prince had been assassinated, he had done his best to secure for his son Maurice the sovereign position of which murder had so suddenly deprived the father. He had been member of the memorable embassies to France and England by which invaluable support for the struggling Provinces had been obtained.

And thus he rapidly sketched the history of the great war of independence in which he had ever been conspicuously employed on the patriotic side. When the late King of France at the close of the century had made peace with Spain, he had been sent as special ambassador to that monarch, and had prevailed on him, notwithstanding his treaty with the enemy, to continue his secret alliance with the States and to promise them a large subsidy, pledges which had been sacredly fulfilled. It was on that occasion that Henry, who was his debtor for past services, professional,

official, and perfectly legitimate, had agreed, when his finances should be in better condition, to discharge his obligations; over and above the customary diplomatic present which he received publicly in common with his colleague Admiral Nassau. This promise, fulfilled a dozen years later, had been one of the senseless charges of corruption brought against him. He had been one of the negotiators of the Truce in which Spain had been compelled to treat with her revolted provinces as with free states and her equals. He had promoted the union of the Protestant princes and their alliance with France and the United States in opposition to the designs of Spain and the League. He had organized and directed the policy by which the forces of England, France, and Protestant Germany had possessed themselves of the debateable land. He had resisted every scheme by which it was hoped to force the States from their hold of those important citadels. He had been one of the foremost promoters of the East India Company, an organization which the Spaniards confessed had been as damaging to them as the Union of the Provinces itself had been.

The idiotic and circumstantial statements, that he had conducted Burgomaster van Berk through a secret staircase of his house into his private study for the purpose of informing him that the only way for the States to get out of the war was to submit themselves once more to their old masters, so often forced upon him by the judges, he contradicted with disdain and disgust. He had ever abhorred and dreaded, he said, the House of Spain, Austria, and Burgundy. His life had passed in open hostility to that house, as was known to all mankind. His mere personal interests, apart from higher considerations, would make an approach to the former sovereign impossible, for besides the deeds he had already alluded to, he had committed at least twelve distinct and separate acts, each one of which would be held high-treason by the House of Austria, and he had learned from childhood that these are things which monarchs never forget. The tales

of van Berk were those of a personal enemy, falsehoods scarcely worth contradicting.

He was grossly and enormously aggrieved by the illegal constitution of the commission. He had protested and continued to protest against it. If that protest were unheeded, he claimed at least that those men should be excluded from the board and the right to sit in judgment upon his person and his deeds who had proved themselves by words and works to be his capital enemies, of which fact he could produce irrefragable evidence. He claimed that the Supreme Court of Holland, or the High Council, or both together, should decide upon that point. He held as his personal enemies, he said, all those who had declared that he, before or since the Truce down to the day of his arrest, had held correspondence with the Spaniards, the Archdukes, the Marquis Spinola, or any one on that side, had received money, money value, or promises of money from them, and in consequence had done or omitted to do anything whatever. He denounced such tales as notorious, shameful, and villainous falsehoods, the utterers and circulators of them as wilful liars, and this he was ready to maintain in every appropriate way for the vindication of the truth and his own honour. He declared solemnly before God Almighty to the States-General and to the States of Holland that his course in the religious matter had been solely directed to the strengthening of the Reformed religion and to the political security of the provinces and cities. He had simply desired that, in the awful and mysterious matter of predestination, the consciences of many preachers and many thousands of good citizens might be placed in tranquillity, with moderate and Christian limitations against all excesses.

From all these reasons, he said, the commissioners, the States-General, the Prince, and every man in the land could clearly see, and were bound to see, that he was the same man now that he was at the beginning of the war, had ever been, and with God's help should ever remain.

The proceedings were kept secret from the public and, as a matter of course, there had been conflicting rumours from day to day as to the probable result of these great state trials. In general however it was thought that the prisoner would be acquitted of the graver charges, or that at most he would be permanently displaced from all office and declared incapable thenceforth to serve the State. The triumph of the Contra-Remonstrants since the Stadholder had placed himself at the head of them, and the complete metamorphosis of the city governments even in the strongholds of the Arminian party seemed to render the permanent political disgrace of the Advocate almost a matter of certainty.

The first step that gave rise to a belief that he might be perhaps more severely dealt with than had been anticipated was the proclamation by the States-General of a public fast and humiliation for the 17th April.

In this document it was announced that "Church and State—during several years past having been brought into great danger of utter destruction through certain persons in furtherance of their ambitious designs—had been saved by the convocation of a National Synod; that a lawful sentence was soon to be expected upon those who had been disturbing the Commonwealth; that through this sentence general tranquillity would probably be restored; and that men were now to thank God for this result, and pray to Him that He would bring the wicked counsels and stratagems of the enemy against these Provinces to naught."

All the prisoners were asked if they too would like in their chambers of bondage to participate in the solemnity, although the motive for the fasting and prayer was not mentioned to them. Each of them in his separate prison room, of course without communication together, selected the 7th Psalm and sang it with his servant and door-keeper.

From the date of this fast-day Barneveld looked upon the result of his trial as likely to be serious.

Many clergymen refused or objected to comply with the terms of this declaration. Others conformed with it greedily, and preached lengthy thanksgiving sermons, giving praise to God that, He had confounded the devices of the ambitious and saved the country from the "blood bath" which they had been preparing for it.

The friends of Barneveld became alarmed at the sinister language of this proclamation, in which for the first time allusions had been made to a forthcoming sentence against the accused.

Especially the staunch and indefatigable du Maurier at once addressed himself again to the States-General. De Boississe had returned to France, having found that the government of a country torn, weakened, and rendered almost impotent by its own internecine factions, was not likely to exert any very potent influence on the fate of the illustrious prisoner.

The States had given him to understand that they were wearied with his perpetual appeals, intercessions, and sermons in behalf of mercy. They made him feel in short that Lewis XIII. and Henry IV. were two entirely different personages.

Du Maurier however obtained a hearing before the Assembly on the 1st May, where he made a powerful and manly speech in presence of the Prince, urging that the prisoners ought to be discharged unless they could be convicted of treason, and that the States ought to show as much deference to his sovereign as they had always done to Elizabeth of England. He made a personal appeal to Prince Maurice, urging upon him how much it would redound to his glory if he should now in generous and princely fashion step

forward in behalf of those by whom he deemed himself to have been personally offended.

His speech fell upon ears hardened against such eloquence and produced no effect.

Meantime the family of Barneveld, not yet reduced to despair, chose to take a less gloomy view of the proclamation. Relying on the innocence of the great statesman, whose aims, in their firm belief, had ever been for the welfare and glory of his fatherland, and in whose heart there had never been kindled one spark of treason, they bravely expected his triumphant release from his long and, as they deemed it, his iniquitous imprisonment.

On this very 1st of May, in accordance with ancient custom, a may-pole was erected on the Voorhout before the mansion of the captive statesman, and wreaths of spring flowers and garlands of evergreen decorated the walls within which were such braised and bleeding hearts. These demonstrations of a noble hypocrisy, if such it were, excited the wrath, not the compassion, of the Stadholder, who thought that the aged matron and her sons and daughters, who dwelt in that house of mourning, should rather have sat in sackcloth with ashes on their heads than indulge in these insolent marks of hope and joyful expectation.

It is certain however that Count William Lewis, who, although most staunch on the Contra-Remonstrant side, had a veneration for the Advocate and desired warmly to save him, made a last and strenuous effort for that purpose.

It was believed then, and it seems almost certain, that, if the friends of the Advocate had been willing to implore pardon for him, the sentence would have been remitted or commuted. Their application would have been successful, for through it his guilt would seem to be acknowledged.

Count William sent for the Fiscal Duyck. He asked him if there were no means of saving the life of a man who was so old and had done the country so much service. After long deliberation, it was decided that Prince Maurice should be approached on the subject. Duyck wished that the Count himself would speak with his cousin, but was convinced by his reasoning that it would be better that the Fiscal should do it. Duyck had a long interview accordingly with Maurice, which was followed by a very secret one between them both and Count William. The three were locked up together, three hours long, in the Prince's private cabinet. It was then decided that Count William should go, as if of his own accord, to the Princess-Dowager Louise, and induce her to send for some one of Barneveld's children and urge that the family should ask pardon for him. She asked if this was done with the knowledge of the Prince of Orange, or whether he would not take it amiss. The Count eluded the question, but implored her to follow his advice.

The result was an interview between the Princess and Madame de Groeneveld, wife of the eldest son. That lady was besought to apply, with the rest of the Advocate's children, for pardon to the Lords States, but to act as if it were done of her own impulse, and to keep their interview profoundly secret.

Madame de Groeneveld took time to consult the other members of the family and some friends. Soon afterwards she came again to the Princess, and informed her that she had spoken with the other children, and that they could not agree to the suggestion. "They would not move one step in it—no, not if it should cost him his head."

The Princess reported the result of this interview to Count William, at which both were so distressed that they determined to leave the Hague.

There is something almost superhuman in the sternness of this stoicism. Yet it lay in the proud and highly tempered character of the Netherlanders. There can be no doubt that the Advocate would have expressly dictated this proceeding if he had been consulted. It was precisely the course adopted by himself. Death rather than life with a false acknowledgment of guilt and therefore with disgrace. The loss of his honour would have been an infinitely greater triumph to his enemies than the loss of his head.

There was no delay in drawing up the sentence. Previously to this interview with the widow of William the Silent, the family of the Advocate had presented to the judges three separate documents, rather in the way of arguments than petitions, undertaking to prove by elaborate reasoning and citations of precedents and texts of the civil law that the proceedings against him were wholly illegal, and that he was innocent of every crime.

No notice had been taken of those appeals.

Upon the questions and answers as already set forth the sentence soon followed, and it may be as well that the reader should be aware, at this point in the narrative, of the substance of that sentence so soon to be pronounced. There had been no indictment, no specification of crime. There had been no testimony or evidence. There had been no argument for the prosecution or the defence. There had been no trial whatever. The prisoner was convicted on a set of questions to which he had put in satisfactory replies. He was sentenced on a preamble. The sentence was a string of vague generalities, intolerably long, and as tangled as the interrogatories. His proceedings during a long career had on the whole tended to something called a "blood bath"—but the blood bath had never occurred.

With an effrontery which did not lack ingenuity, Barneveld's defence was called by the commissioners his confession, and was formally registered as such in the process and the sentence; while the fact that he had not been

stretched upon the rack during his trial, nor kept in chains for the eight months of his imprisonment, were complacently mentioned as proofs of exceptionable indulgence.

"Whereas the prisoner John of Barneveld," said the sentence, "without being put to the torture and without fetters of iron, has confessed to having perturbed religion, greatly afflicted the Church of God, and carried into practice exorbitant and pernicious maxims of State inculcating by himself and accomplices that each province had the right to regulate religious affairs within its own territory, and that other provinces were not to concern themselves therewith"—therefore and for many other reasons he merited punishment.

He had instigated a protest by vote of three provinces against the National Synod. He had despised the salutary advice of many princes and notable personages. He had obtained from the King of Great Britain certain letters furthering his own opinions, the drafts of which he had himself suggested, and corrected and sent over to the States' ambassador in London, and when written out, signed, and addressed by the King to the States-General, had delivered them without stating how they had been procured.

Afterwards he had attempted to get other letters of a similar nature from the King, and not succeeding had defamed his Majesty as being a cause of the troubles in the Provinces. He had permitted unsound theologians to be appointed to church offices, and had employed such functionaries in political affairs as were most likely to be the instruments of his own purposes. He had not prevented vigorous decrees from being enforced in several places against those of the true religion. He had made them odious by calling them Puritans, foreigners, and "Flanderizers," although the United Provinces had solemnly pledged to each other their lives, fortunes, and blood by various conventions, to some of which the prisoner was

himself a party, to maintain the Reformed, Evangelical, religion only, and to, suffer no change in it to be made for evermore.

In order to carry out his design and perturb the political state of the Provinces he had drawn up and caused to be enacted the Sharp Resolution of 4th August 1617. He had thus nullified the ordinary course of justice. He had stimulated the magistrates to disobedience, and advised them to strengthen themselves with freshly enlisted military companies. He had suggested new-fangled oaths for the soldiers, authorizing them to refuse obedience to the States-General and his Excellency. He had especially stimulated the proceedings at Utrecht. When it was understood that the Prince was to pass through Utrecht, the States of that province not without the prisoner's knowledge had addressed a letter to his Excellency, requesting him not to pass through their city. He had written a letter to Ledenberg suggesting that good watch should be held at the town gates and up and down the river Lek. He had desired that Ledenberg having read that letter should burn it. He had interfered with the cashiering of the mercenaries at Utrecht. He had said that such cashiering without the consent of the States of that province was an act of force which would justify resistance by force.

Although those States had sent commissioners to concert measures with the Prince for that purpose, he had advised them to conceal their instructions until his own plan for the disbandment could be carried out. At a secret meeting in the house of Tresel, clerk of the States-General, between Grotius, Hoogerbeets, and other accomplices, it was decided that this advice should be taken. Report accordingly was made to the prisoner. He had advised them to continue in their opposition to the National Synod.

He had sought to calumniate and blacken his Excellency by saying that he aspired to the sovereignty of the Provinces. He had received intelligence

on that subject from abroad in ciphered letters.

He had of his own accord rejected a certain proposed, notable alliance of the utmost importance to this Republic.

[This refers, I think without doubt, to the conversation between King James and Caron at the end of the year 1815.]

He had received from foreign potentates various large sums of money and other presents.

All "these proceedings tended to put the city of Utrecht into a blood-bath, and likewise to bring the whole country, and the person of his Excellency into the uttermost danger."

This is the substance of the sentence, amplified by repetitions and exasperating tautology into thirty or forty pages.

It will have been perceived by our analysis of Barneveld's answers to the commissioners that all the graver charges which he was now said to have confessed had been indignantly denied by him or triumphantly justified.

It will also be observed that he was condemned for no categorical crime — lese-majesty, treason, or rebellion. The commissioners never ventured to assert that the States-General were sovereign, or that the central government had a right to prescribe a religious formulary for all the United Provinces. They never dared to say that the prisoner had been in communication with the enemy or had received bribes from him.

Of insinuation and implication there was much, of assertion very little, of demonstration nothing whatever.

But supposing that all the charges had been admitted or proved, what course would naturally be taken in consequence? How was a statesman who adhered to the political, constitutional, and religious opinions on which he had acted, with the general acquiescence, during a career of more than forty years, but which were said to be no longer in accordance with public opinion, to be dealt with? Would the commissioners request him to retire honourably from the high functions which he had over and over again offered to resign? Would they consider that, having fairly impeached and found him guilty of disturbing the public peace by continuing to act on his well-known legal theories, they might deprive him summarily of power and declare him incapable of holding office again?

The conclusion of the commissioners was somewhat more severe than either of these measures. Their long rambling preamble ended with these decisive words:

"Therefore the judges, in name of the Lords States-General, condemn the prisoner to be taken to the Binnenhof, there to be executed with the sword that death may follow, and they declare all his property confiscated."

The execution was to take place so soon as the sentence had been read to the prisoner.

After the 1st of May Barneveld had not appeared before his judges. He had been examined in all about sixty times.

In the beginning of May his servant became impatient. "You must not be impatient," said his master. "The time seems much longer because we get no news now from the outside. But the end will soon come. This delay cannot last for ever."

Intimation reached him on Saturday the 11th May that the sentence was ready and would soon be pronounced.

"It is a bitter folk," said Barneveld as he went to bed. "I have nothing good to expect of them." Next day was occupied in sewing up and concealing his papers, including a long account of his examination, with the questions and answers, in his Spanish arm-chair. Next day van der Meulen said to the servant, "I will bet you a hundred florins that you'll not be here next Thursday."

The faithful John was delighted, not dreaming of the impending result.

It was Sunday afternoon, 12th May, and about half past five o'clock. Barneveld sat in his prison chamber, occupied as usual in writing, reviewing the history of the past, and doing his best to reduce into something like order the rambling and miscellaneous interrogatories, out of which his trial had been concocted, while the points dwelt in his memory, and to draw up a concluding argument in his own defence. Work which according to any equitable, reasonable, or even decent procedure should have been entrusted to the first lawyers of the country—preparing the case upon the law and the facts with the documents before them, with the power of cross-questioning witnesses and sifting evidence, and enlightened by constant conferences with the illustrious prisoner himself—came entirely upon his own shoulders, enfeebled as he was by age, physical illness, and by the exhaustion of long imprisonment. Without books, notes of evidence, or even copies of the charges of which he stood accused, he was obliged to draw up his counter-arguments against the impeachment and then by aid of a faithful valet to conceal his manuscript behind the tapestry of the chamber, or cause them to be sewed up in the lining of his easy-chair, lest they should be taken from him by order of the judges who sat in the chamber below.

While he was thus occupied in preparations for his next encounter with the tribunal, the door opened, and three gentlemen entered. Two were the prosecuting officers of the government, Fiscal Sylla and Fiscal van Leeuwen. The other was the provost-marshal, Carel de Nijs. The servant was directed to leave the room.

Barneveld had stepped into his dressing-room on hearing footsteps, but came out again with his long furred gown about him as the three entered. He greeted them courteously and remained standing, with his hands placed on the back of his chair and with one knee resting carelessly against the arm of it. Van Leeuwen asked him if he would not rather be seated, as they brought a communication from the judges. He answered in the negative. Von Leeuwen then informed him that he was summoned to appear before the judges the next morning to hear his sentence of death.

"The sentence of death!" he exclaimed, without in the least changing his position; "the sentence of death! the sentence of death!" saying the words over thrice, with an air of astonishment rather than of horror. "I never expected that! I thought they were going to hear my defence again. I had intended to make some change in my previous statements, having set some things down when beside myself with choler."

He then made reference to his long services. Van Leeuwen expressed himself as well acquainted with them. "He was sorry," he said, "that his lordship took this message ill of him."

"I do not take it ill of you," said Barneveld, "but let them," meaning the judges, "see how they will answer it before God. Are they thus to deal with a true patriot? Let me have pen, ink, and paper, that for the last time I may write farewell to my wife."

"I will go ask permission of the judges," said van Leenwen, "and I cannot think that my lord's request will be refused."

While van Leeuwen was absent, the Advocate exclaimed, looking at the other legal officer:

"Oh, Sylla, Sylla, if your father could only have seen to what uses they would put you!"

Sylla was silent.

Permission to write the letter was soon received from de Voogt, president of the commission. Pen, ink, and paper were brought, and the prisoner calmly sat down to write, without the slightest trace of discomposure upon his countenance or in any of his movements.

While he was writing, Sylla said with some authority, "Beware, my lord, what you write, lest you put down something which may furnish cause for not delivering the letter."

Barneveld paused in his writing, took the glasses from his eyes, and looked Sylla in the face.

"Well, Sylla," he said very calmly, "will you in these my last moments lay down the law to me as to what I shall write to my wife?"

He then added with a half-smile, "Well, what is expected of me?"

"We have no commission whatever to lay down the law," said van Leeuwen.

"Your worship will write whatever you like."

While he was writing, Anthony Walaeus came in, a preacher and professor of Middelburg, a deputy to the Synod of Dordrecht, a learned and amiable man, sent by the States-General to minister to the prisoner on this supreme occasion; and not unworthy to be thus selected.

The Advocate, not knowing him, asked him why he came.

"I am not here without commission," said the clergyman. "I come to console my lord in his tribulation."

"I am a man," said Barneveld; "have come to my present age, and I know how to console myself. I must write, and have now other things to do."

The preacher said that he would withdraw and return when his worship was at leisure.

"Do as you like," said the Advocate, calmly going on with his writing.

When the letter was finished, it was sent to the judges for their inspection, by whom it was at once forwarded to the family mansion in the Voorhout, hardly a stone's throw from the prison chamber.

Thus it ran:

"Very dearly beloved wife, children, sons-in-law, and grandchildren, I greet you altogether most affectionately. I receive at this moment the very heavy and sorrowful tidings that I, an old man, for all my services done well and faithfully to the Fatherland for so many years (after having performed all respectful and friendly offices to his Excellency the Prince with upright affection so far as my official duty and vocation would permit, shown friendship to many people of all sorts, and wittingly injured no man), must prepare myself to die to-morrow.

"I console myself in God the Lord, who knows all hearts, and who will judge all men. I beg you all together to do the same. I have steadily and faithfully served My Lords the States of Holland and their nobles and cities. To the States of Utrecht as sovereigns of my own Fatherland I have imparted at their request upright and faithful counsel, in order to save them from tumults of the populace, and from the bloodshed with which they had so long been threatened. I had the same views for the cities of Holland in order that every one might be protected and no one injured.

"Live together in love and peace. Pray for me to Almighty God, who will graciously hold us all in His holy keeping.

"From my chamber of sorrow, the 12th May 1619.

"Your very dear husband, father, father-in-law, and grandfather,

"JOHN OF BARNEVELD."

It was thought strange that the judges should permit so simple and clear a statement, an argument in itself, to be forwarded. The theory of his condemnation was to rest before the public on his confessions of guilt, and here in the instant of learning the nature of the sentence in a few hours to be pronounced upon him he had in a few telling periods declared his entire innocence. Nevertheless the letter had been sent at once to its address.

So soon as this sad business had been disposed of, Anthony Walaeus returned. The Advocate apologized to the preacher for his somewhat abrupt greeting on his first appearance. He was much occupied and did not know him, he said, although he had often heard of him. He begged him, as well as the provost-marshal, to join him at supper, which was soon brought.

Barneveld ate with his usual appetite, conversed cheerfully on various topics, and pledged the health of each of his guests in a glass of beer. Contrary to his wont he drank at that repast no wine. After supper he went out into the little ante-chamber and called his servant, asking him how he had been faring. Now John Franken had just heard with grief unspeakable the melancholy news of his master's condemnation from two soldiers of the guard, who had been sent by the judges to keep additional watch over the prisoner. He was however as great a stoic as his master, and with no outward and superfluous manifestations of woe had simply implored the captain-at-arms, van der Meulen, to intercede with the judges that he might be allowed to stay with his lord to the last. Meantime he had been expressly informed that he was to say nothing to the Advocate in secret, and that his master was not to speak to him in a low tone nor whisper in his ear.

When the Advocate came out into the ante-chamber and looking over his shoulder saw the two soldiers he at once lowered his voice.

"Hush-speak low," he whispered; "this is too cruel." John then informed him of van der Meulen's orders, and that the soldiers had also been instructed to look to it sharply that no word was exchanged between master and man except in a loud voice.

"Is it possible," said the Advocate, "that so close an inspection is held over me in these last hours? Can I not speak a word or two in freedom? This is a needless mark of disrespect."

The soldiers begged him not to take their conduct amiss as they were obliged strictly to obey orders.

He returned to his chamber, sat down in his chair, and begged Walaeus to go on his behalf to Prince Maurice.

"Tell his Excellency," said he, "that I have always served him with upright affection so far as my office, duties, and principles permitted. If I, in the discharge of my oath and official functions, have ever done anything contrary to his views, I hope that he will forgive it, and that he will hold my children in his gracious favour."

It was then ten o'clock. The preacher went downstairs and crossed the courtyard to the Stadholder's apartments, where he at once gained admittance.

Maurice heard the message with tears in his eyes, assuring Walaeus that he felt deeply for the Advocate's misfortunes. He had always had much affection for him, he said, and had often warned him against his mistaken courses. Two things, however, had always excited his indignation. One was that Barneveld had accused him of aspiring to sovereignty. The other that he had placed him in such danger at Utrecht. Yet he forgave him all. As regarded his sons, so long as they behaved themselves well they might rely on his favour.

As Walaeus was about to leave the apartment, the Prince called him back.

"Did he say anything of a pardon?" he asked, with some eagerness.

"My Lord," answered the clergyman, "I cannot with truth say that I understood him to make any allusion to it."

Walaeus returned immediately to the prison chamber and made his report of the interview. He was unwilling however to state the particulars of the offence which Maurice declared himself to have taken at the acts of the Advocate.

But as the prisoner insisted upon knowing, the clergyman repeated the whole conversation.

"His Excellency has been deceived in regard to the Utrecht business," said Barneveld, "especially as to one point. But it is true that I had fear and apprehension that he aspired to the sovereignty or to more authority in the country. Ever since the year 1600 I have felt this fear and have tried that these apprehensions might be rightly understood."

While Walaeus had been absent, the Reverend Jean la Motte (or Lamotius) and another clergyman of the Hague had come to the prisoner's apartment. La Motte could not look upon the Advocate's face without weeping, but the others were more collected. Conversation now ensued among the four; the preachers wishing to turn the doomed statesman's thought to the consolations of religion.

But it was characteristic of the old lawyer's frame of mind that even now he looked at the tragical position in which he found himself from a constitutional and controversial point of view. He was perfectly calm and undaunted at the awful fate so suddenly and unexpectedly opened before his eyes, but he was indignant at what he esteemed the ignorance, injustice, and stupidity of the sentence to be pronounced against him.

"I am ready enough to die," he said to the three clergymen, "but I cannot comprehend why I am to die. I have done nothing except in obedience to the laws and privileges of the land and according to my oath, honour, and conscience."

"These judges," he continued, "come in a time when other maxims prevail in the State than those of my day. They have no right therefore to sit in judgment upon me."

The clergymen replied that the twenty-four judges who had tried the case were no children and were conscientious men; that it was no small thing to condemn a man, and that they would have to answer it before the Supreme Judge of all.

"I console myself," he answered, "in the Lord my God, who knows all hearts and shall judge all men. God is just.

"They have not dealt with me," he continued, "as according to law and justice they were bound to deal. They have taken away from me my own sovereign lords and masters and deposed them. To them alone I was responsible. In their place they have put many of my enemies who were never before in the government, and almost all of whom are young men who have not seen much or read much. I have seen and read much, and know that from such examples no good can follow. After my death they will learn for the first time what governing means."

"The twenty-four judges are nearly all of them my enemies. What they have reproached me with, I have been obliged to hear. I have appealed against these judges, but it has been of no avail. They have examined me in piecemeal, not in statesmanlike fashion. The proceedings against me have been much too hard. I have frequently requested to see the notes of my examination as it proceeded, and to confer upon it with aid and counsel of friends, as would be the case in all lands governed by law. The request was refused. During this long and wearisome affliction and misery I have not once been allowed to speak to my wife and children. These are indecent proceedings against a man seventy-two years of age, who has served his country faithfully for three-and-forty years. I bore arms with the volunteers at my own charges at the siege of Haarlem and barely escaped with life."

It was not unnatural that the aged statesman's thoughts should revert in this supreme moment to the heroic scenes in which he had been an actor

almost a half-century before. He could not but think with bitterness of those long past but never forgotten days when he, with other patriotic youths, had faced the terrible legions of Alva in defence of the Fatherland, at a time when the men who were now dooming him to a traitor's death were unborn, and who, but for his labours, courage, wisdom, and sacrifices, might have never had a Fatherland to serve, or a judgment-seat on which to pronounce his condemnation.

Not in a spirit of fretfulness, but with disdainful calm, he criticised and censured the proceedings against himself as a violation of the laws of the land and of the first principles of justice, discussing them as lucidly and steadily as if they had been against a third person.

The preachers listened, but had nothing to say. They knew not of such matters, they said, and had no instructions to speak of them. They had been sent to call him to repentance for his open and hidden sins and to offer the consolations of religion.

"I know that very well," he said, "but I too have something to say notwithstanding." The conversation then turned upon religious topics, and the preachers spoke of predestination.

"I have never been able to believe in the matter of high predestination," said the Advocate. "I have left it in the hands of God the Lord. I hold that a good Christian man must believe that he through God's grace and by the expiation of his sin through our Redeemer Jesus Christ is predestined to be saved, and that this belief in his salvation, founded alone on God's grace and the merits of our Redeemer Jesus Christ, comes to him through the same grace of God. And if he falls into great sins, his firm hope and confidence must be that the Lord God will not allow him to continue in them, but that, through prayer for grace and repentance, he will be converted from evil and remain in the faith to the end of his life."

These feelings, he said, he had expressed fifty-two years before to three eminent professors of theology in whom he confided, and they had assured him that he might tranquilly continue in such belief without examining further. "And this has always been my creed," he said.

The preachers replied that faith is a gift of God and not given to all men, that it must be given out of heaven to a man before he could be saved. Hereupon they began to dispute, and the Advocate spoke so earnestly and well that the clergymen were astonished and sat for a time listening to him in silence.

He asked afterwards about the Synod, and was informed that its decrees had not yet been promulgated, but that the Remonstrants had been condemned.

"It is a pity," said he. "One is trying to act on the old Papal system, but it will never do. Things have gone too far. As to the Synod, if My Lords the States of Holland had been heeded there would have been first a provincial synod and then a national one."—"But," he added, looking the preachers in the face, "had you been more gentle with each other, matters would not have taken so high a turn. But you have been too fierce one against the other, too full of bitter party spirit."

They replied that it was impossible for them to act against their conscience and the supreme authority. And then they asked him if there was nothing that troubled him in, his conscience in the matters for which he must die; nothing for which he repented and sorrowed, and for which he would call upon God for mercy.

"This I know well," he said, "that I have never willingly done wrong to any man. People have been ransacking my letters to Caron—confidential ones written several years ago to an old friend when I was troubled and

seeking for counsel and consolation. It is hard that matter of impeachment against me to-day should be sought for thus."

And then he fell into political discourse again on the subject of the Waartgelders and the State rights, and the villainous pasquils and libels that had circulated so long through the country.

"I have sometimes spoken hastily, I confess," he said; "but that was when I was stung by the daily swarm of infamous and loathsome pamphlets, especially those directed against my sovereign masters the States of Holland. That I could not bear. Old men cannot well brush such things aside. All that was directly aimed at me in particular I endeavoured to overcome with such patience as I could muster. The disunion and mutual enmity in the country have wounded me to the heart. I have made use of all means in my power to accommodate matters, to effect with all gentleness a mutual reconciliation. I have always felt a fear lest the enemy should make use of our internal dissensions to strike a blow against us. I can say with perfect truth that ever since the year '77 I have been as resolutely and unchangeably opposed to the Spaniards and their adherents, and their pretensions over these Provinces, as any man in the world, no one excepted, and as ready to sacrifice property and shed my blood in defence of the Fatherland. I have been so devoted to the service of the country that I have not been able to take the necessary care of my own private affairs."

So spoke the great statesman in the seclusion of his prison, in the presence of those clergymen whom he respected, at a supreme moment, when, if ever, a man might be expected to tell the truth. And his whole life which belonged to history, and had been passed on the world's stage before the eyes of two generations of spectators, was a demonstration of the truth of his words.

But Burgomaster van Berk knew better. Had he not informed the twenty-four commissioners that, twelve years before, the Advocate wished to subject the country to Spain, and that Spinola had drawn a bill of exchange for 100,000 ducats as a compensation for his efforts?

It was eleven o'clock. Barneveld requested one of the brethren to say an evening prayer. This was done by La Motte, and they were then requested to return by three or four o'clock next morning. They had been directed, they said, to remain with him all night. "That is unnecessary," said the Advocate, and they retired.

His servant then helped his master to undress, and he went to bed as usual. Taking off his signet-ring, he gave it to John Franken.

"For my eldest son," he said.

The valet sat down at the head of his bed in order that his master might speak to him before he slept. But the soldiers ordered him away and compelled him to sit in a distant part of the room.

An hour after midnight, the Advocate having been unable to lose himself, his servant observed that Isaac, one of the soldiers, was fast asleep. He begged the other, Tilman Schenk by name, to permit him some private words with his master. He had probably last messages, he thought, to send to his wife and children, and the eldest son, M. de Groeneveld, would no doubt reward him well for it. But the soldier was obstinate in obedience to the orders of the judges.

Barneveld, finding it impossible to sleep, asked his servant to read to him from the Prayer-book. The soldier called in a clergyman however, another one named Hugo Bayerus, who had been sent to the prison, and who now read to him the Consolations of the Sick. As he read, he made exhortations

and expositions, which led to animated discussion, in which the Advocate expressed himself with so much fervour and eloquence that all present were astonished, and the preacher sat mute a half-hour long at the bed-side.

"Had there been ten clergymen," said the simple-hearted sentry to the valet, "your master would have enough to say to all of them."

Barneveld asked where the place had been prepared in which he was to die.

"In front of the great hall, as I understand," said Bayerus, "but I don't know the localities well, having lived here but little."

"Have you heard whether my Grotius is to die, and Hoogerbeets also?" he asked?

I have heard nothing to that effect," replied the clergyman.

"I should most deeply grieve for those two gentlemen," said Barneveld, "were that the case. They may yet live to do the land great service. That great rising light, de Groot, is still young, but a very wise and learned gentleman, devoted to his Fatherland with all zeal, heart, and soul, and ready to stand up for her privileges, laws, and rights. As for me, I am an old and worn-out man. I can do no more. I have already done more than I was really able to do. I have worked so zealously in public matters that I have neglected my private business. I had expressly ordered my house at Loosduinen" [a villa by the seaside] "to be got ready, that I might establish myself there and put my affairs in order. I have repeatedly asked the States of Holland for my discharge, but could never obtain it. It seems that the Almighty had otherwise disposed of me."

He then said he would try once more if he could sleep. The clergyman and the servant withdrew for an hour, but his attempt was unsuccessful. After an hour he called for his French Psalm Book and read in it for some time. Sometime after two o'clock the clergymen came in again and conversed with him. They asked him if he had slept, if he hoped to meet Christ, and if there was anything that troubled his conscience.

"I have not slept, but am perfectly tranquil," he replied. "I am ready to die, but cannot comprehend why I must die. I wish from my heart that, through my death and my blood, all disunion and discord in this land may cease."

He bade them carry his last greetings to his fellow prisoners. "Say farewell for me to my good Grotius," said he, "and tell him that I must die."

The clergymen then left him, intending to return between five and six o'clock.

He remained quiet for a little while and then ordered his valet to cut open the front of his shirt. When this was done, he said, "John, are you to stay by me to the last?"

"Yes," he replied, "if the judges permit it."

"Remind me to send one of the clergymen to the judges with the request," said his master.

The faithful John, than whom no servant or friend could be more devoted, seized the occasion, with the thrift and stoicism of a true Hollander, to suggest that his lord might at the same time make some testamentary disposition in his favour.

"Tell my wife and children," said the Advocate, "that they must console each other in mutual love and union. Say that through God's grace I am perfectly at ease, and hope that they will be equally tranquil. Tell my children that I trust they will be loving and friendly to their mother during the short time she has yet to live. Say that I wish to recommend you to them that they may help you to a good situation either with themselves or with others. Tell them that this was my last request."

He bade him further to communicate to the family the messages sent that night through Walaeus by the Stadholder.

The valet begged his master to repeat these instructions in presence of the clergyman, or to request one of them to convey them himself to the family. He promised to do so.

"As long as I live," said the grateful servant, "I shall remember your lordship in my prayers."

"No, John," said the Advocate, "that is Popish. When I am dead, it is all over with prayers. Pray for me while I still live. Now is the time to pray. When one is dead, one should no longer be prayed for."

La Motte came in. Barneveld repeated his last wishes exactly as he desired them to be communicated to his wife and children. The preacher made no response. "Will you take the message?" asked the prisoner. La Motte nodded, but did not speak, nor did he subsequently fulfil the request.

Before five o'clock the servant heard the bell ring in the apartment of the judges directly below the prison chamber, and told his master he had understood that they were to assemble at five o'clock.

"I may as well get up then," said the Advocate; "they mean to begin early, I suppose. Give me my doublet and but one pair of stockings."

He was accustomed to wear two or three pair at a time.

He took off his underwaistcoat, saying that the silver bog which was in one of the pockets was to be taken to his wife, and that the servant should keep the loose money there for himself. Then he found an opportunity to whisper to him, "Take good care of the papers which are in the apartment." He meant the elaborate writings which he had prepared during his imprisonment and concealed in the tapestry and within the linings of the chair.

As his valet handed him the combs and brushes, he said with a smile, "John, this is for the last time."

When he was dressed, he tried, in rehearsal of the approaching scene, to pull over his eyes the silk skull-cap which he usually wore under his hat. Finding it too tight he told the valet to put the nightcap in his pocket and give it him when he should call for it. He then swallowed a half-glass of wine with a strengthening cordial in it, which he was wont to take.

The clergymen then re-entered, and asked if he had been able to sleep. He answered no, but that he had been much consoled by many noble things which he had been reading in the French Psalm Book. The clergymen said that they had been thinking much of the beautiful confession of faith which he had made to them that evening. They rejoiced at it, they said, on his account, and had never thought it of him. He said that such had always been his creed.

At his request Walaeus now offered a morning prayer Barneveld fell on his knees and prayed inwardly without uttering a sound. La Motte asked

when he had concluded, "Did my Lord say Amen?"—"Yes, Lamotius," he replied; "Amen."—"Has either of the brethren," he added, "prepared a prayer to be offered outside there?"

La Motte informed him that this duty had been confided to him. Some passages from Isaiah were now read aloud, and soon afterwards Walaëus was sent for to speak with the judges. He came back and said to the prisoner, "Has my Lord any desire to speak with his wife or children, or any of his friends?" It was then six o'clock, and Barneveld replied:

"No, the time is drawing near. It would excite a new emotion." Walaëus went back to the judges with this answer, who thereupon made this official report:

"The husband and father of the petitioners, being asked if he desired that any of the petitioners should come to him, declared that he did not approve of it, saying that it would cause too great an emotion for himself as well as for them. This is to serve as an answer to the petitioners."

Now the Advocate knew nothing of the petition. Up to the last moment his family had been sanguine as to his ultimate acquittal and release. They relied on a promise which they had received or imagined that they had received from the Stadholder that no harm should come to the prisoner in consequence of the arrest made of his person in the Prince's apartments on the 8th of August. They had opened this tragical month of May with flagstaffs and flower garlands, and were making daily preparations to receive back the revered statesman in triumph.

The letter written by him from his "chamber of sorrow," late in the evening of 12th May, had at last dispelled every illusion. It would be idle to attempt to paint the grief and consternation into which the household in the Voorhout was plunged, from the venerable dame at its head, surrounded by

her sons and daughters and children's children, down to the humblest servant in their employment. For all revered and loved the austere statesman, but simple and benignant father and master.

No heed had been taken of the three elaborate and argumentative petitions which, prepared by learned counsel in name of the relatives, had been addressed to the judges. They had not been answered because they were difficult to answer, and because it was not intended that the accused should have the benefit of counsel.

An urgent and last appeal was now written late at night, and signed by each member of the family, to his Excellency the Prince and the judge commissioners, to this effect:

"The afflicted wife and children of M. van Barneveld humbly show that having heard the sorrowful tidings of his coming execution, they humbly beg that it may be granted them to see and speak to him for the last time."

The two sons delivered this petition at four o'clock in the morning into the hands of de Voogd, one of the judges. It was duly laid before the commission, but the prisoner was never informed, when declining a last interview with his family, how urgently they had themselves solicited the boon.

Louise de Coligny, on hearing late at night the awful news, had been struck with grief and horror. She endeavoured, late as it was, to do something to avert the doom of one she so much revered, the man on whom her illustrious husband had leaned his life long as on a staff of iron. She besought an interview of the Stadholder, but it was refused. The wife of William the Silent had no influence at that dire moment with her stepson. She was informed at first that Maurice was asleep, and at four in the morning that all intervention was useless.

The faithful and energetic du Maurier, who had already exhausted himself in efforts to save the life of the great prisoner, now made a last appeal. He, too, heard at four o'clock in the morning of the 13th that sentence of death was to be pronounced. Before five o'clock he made urgent application to be heard before the Assembly of the States-General as ambassador of a friendly sovereign who took the deepest interest in the welfare of the Republic and the fate of its illustrious statesman. The appeal was refused. As a last resource he drew up an earnest and eloquent letter to the States-General, urging clemency in the name of his king. It was of no avail. The letter may still be seen in the Royal Archives at the Hague, drawn up entirely in du Maurier's clear and beautiful handwriting. Although possibly a first draft, written as it was under such a mortal pressure for time, its pages have not one erasure or correction.

It was seven o'clock. Barneveld having observed by the preacher (La Motte's) manner that he was not likely to convey the last messages which he had mentioned to his wife and children, sent a request to the judges to be allowed to write one more letter. Captain van der Meulen came back with the permission, saying he would wait and take it to the judges for their revision.

The letter has been often published.

"Must they see this too? Why, it is only a line in favour of John," said the prisoner, sitting quietly down to write this letter:

"Very dear wife and children, it is going to an end with me. I am, through the grace of God, very tranquil. I hope that you are equally so, and that you may by mutual love, union, and peace help each other to overcome all things, which I pray to the Omnipotent as my last request. John Franken has served me faithfully for many years and throughout all these my afflictions, and is to remain with me to the end. He deserves to be recommended to you

and to be furthered to good employments with you or with others. I request you herewith to see to this.

"I have requested his Princely Excellency to hold my sons and children in his favour, to which he has answered that so long as you conduct yourselves well this shall be the case. I recommend this to you in the best form and give you all into God's holy keeping. Kiss each other and all my grandchildren, for the last time in my name, and fare you well. Out of the chamber of sorrow, 13th May 1619. Your dear husband and father, JOHN OF BARNEVELD.

"P.S. You will make John Franken a present in memory of me."

Certainly it would be difficult to find a more truly calm, courageous, or religious spirit than that manifested by this aged statesman at an hour when, if ever, a human soul is tried and is apt to reveal its innermost depths or shallows. Whatever Gomarus or Bogerman, or the whole Council of Dordrecht, may have thought of his theology, it had at least taught him forgiveness of his enemies, kindness to his friends, and submission to the will of the Omnipotent. Every moment of his last days on earth had been watched and jealously scrutinized, and his bitterest enemies had failed to discover one trace of frailty, one manifestation of any vacillating, ignoble, or malignant sentiment.

The drums had been sounding through the quiet but anxiously expectant town since four o'clock that morning, and the tramp of soldiers marching to the Inner Court had long been audible in the prison chamber.

Walaeus now came back with a message from the judges. "The high commissioners," he said, "think it is beginning. Will my Lord please to prepare himself?"

"Very well, very well," said the prisoner. "Shall we go at once?"

But Walaeus suggested a prayer. Upon its conclusion, Barneveld gave his hand to the provost-marshal and to the two soldiers, bidding them adieu, and walked downstairs, attended by them, to the chamber of the judges. As soon as he appeared at the door, he was informed that there had been a misunderstanding, and he was requested to wait a little. He accordingly went upstairs again with perfect calmness, sat down in his chamber again, and read in his French Psalm Book. Half an hour later he was once more summoned, the provost-marshal and Captain van der Meulen reappearing to escort him. "Mr. Provost," said the prisoner, as they went down the narrow staircase, "I have always been a good friend to you."—"It is true," replied that officer, "and most deeply do I grieve to see you in this affliction."

He was about to enter the judges' chamber as usual, but was informed that the sentence would be read in the great hall of judicature. They descended accordingly to the basement story, and passed down the narrow flight of steps which then as now connected the more modern structure, where the Advocate had been imprisoned and tried, with what remained of the ancient palace of the Counts of Holland. In the centre of the vast hall—once the banqueting chamber of those petty sovereigns; with its high vaulted roof of cedar which had so often in ancient days rung with the sounds of mirth and revelry—was a great table at which the twenty-four judges and the three prosecuting officers were seated, in their black caps and gowns of office. The room was lined with soldiers and crowded with a dark, surging mass of spectators, who had been waiting there all night.

A chair was placed for the prisoner. He sat down, and the clerk of the commission, Pots by name, proceeded at once to read the sentence. A summary of this long, rambling, and tiresome paper has been already laid before the reader. If ever a man could have found it tedious to listen to his

own death sentence, the great statesman might have been in that condition as he listened to Secretary Pots.

During the reading of the sentence the Advocate moved uneasily on his seat, and seemed about to interrupt the clerk at several passages which seemed to him especially preposterous. But he controlled himself by a strong effort, and the clerk went steadily on to the conclusion.

Then Barneveld said:

"The judges have put down many things which they have no right to draw from my confession. Let this protest be added."

"I thought too," he continued, "that My Lords the States-General would have had enough in my life and blood, and that my wife and children might keep what belongs to them. Is this my recompense for forty-three years' service to these Provinces?"

President de Voogd rose:

"Your sentence has been pronounced," he said. "Away! away! "So saying he pointed to the door into which one of the great windows at the south-eastern front of the hall had been converted.

Without another word the old man rose from his chair and strode, leaning on his staff, across the hall, accompanied by his faithful valet and the provost and escorted by a file of soldiers. The mob of spectators flowed out after him at every door into the inner courtyard in front of the ancient palace.

ETEXT EDITOR'S BOOKMARKS:

Better to be governed by magistrates than mobs
Burning with bitter revenge for all the favours he had received
Death rather than life with a false acknowledgment of guilt
Enemy of all compulsion of the human conscience
Heidelberg Catechism were declared to be infallible
I know how to console myself
Implication there was much, of assertion very little
John Robinson
Magistracy at that moment seemed to mean the sword
Only true religion
Rather a wilderness to reign over than a single heretic
William Brewster

*** END OF THE PROJECT GUTENBERG EBOOK LIFE AND DEATH
OF JOHN OF BARNEVELD, ADVOCATE OF HOLLAND : WITH A
VIEW OF THE PRIMARY CAUSES AND MOVEMENTS OF THE
THIRTY YEARS' WAR, 1618-19 ***

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